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No.
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**IN THE
Supreme Court of the United States**

October Term, 1994

JOHN J. HURLEY, INDIVIDUALLY AND THE
SOUTH BOSTON ALLIED WAR VETERANS COUNCIL,
PETITIONERS,

v.

IRISH-AMERICAN GAY, LESBIAN AND BISEXUAL
GROUP OF BOSTON, AN UNINCORPORATED ASSOCIATION
BY AND THROUGH TIMOTHY DALEY, BARBRA KAY, AND
CATHLEEN FINN, ACTING ON THEIR OWN BEHALF
AND ON BEHALF OF MEMBERS OF THE ASSOCIATION,
RESPONDENTS.

ON A PETITION FOR WRIT OF CERTIORARI
TO SUPREME JUDICIAL COURT OF
THE COMMONWEALTH OF MASSACHUSETTS.

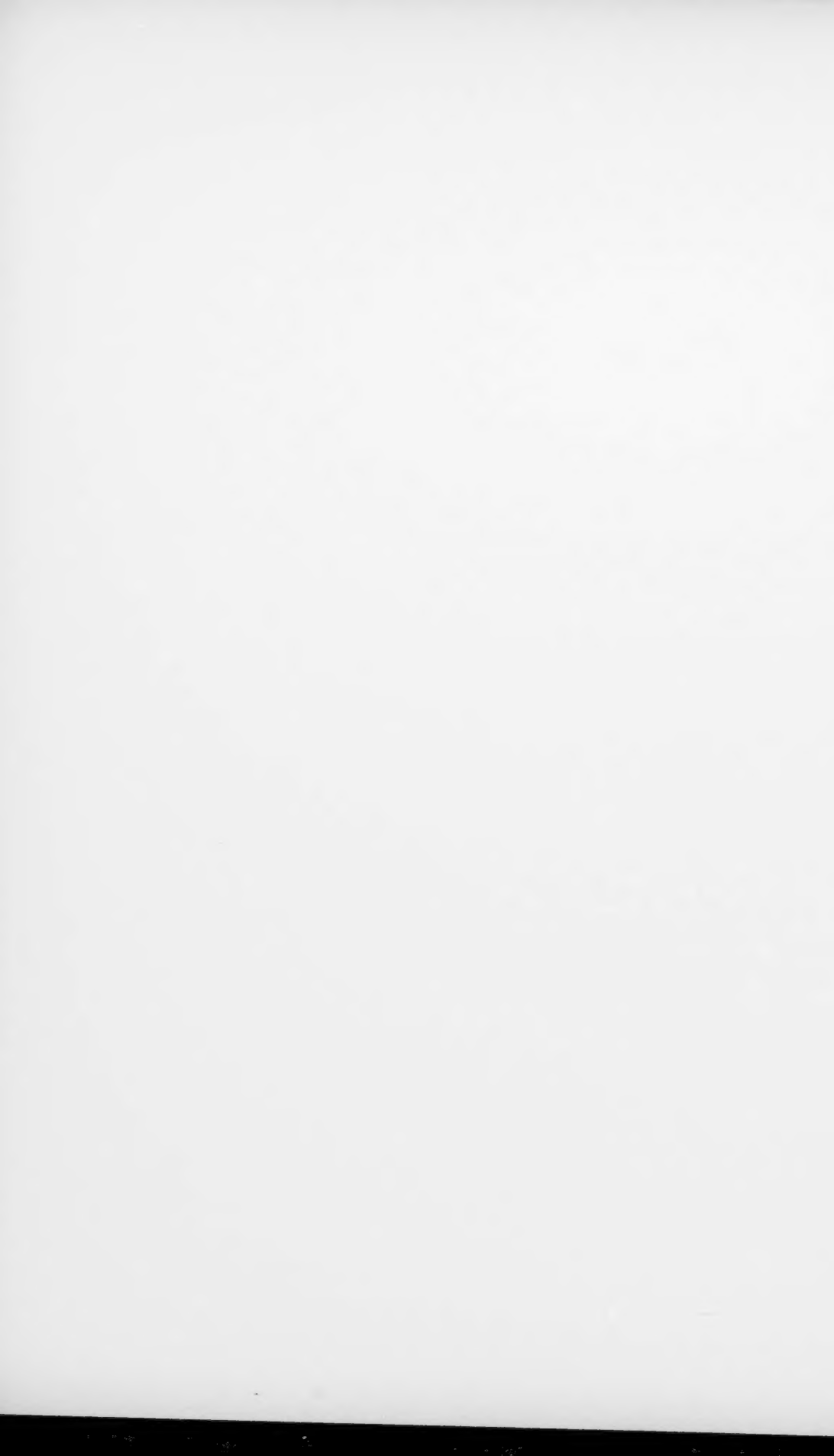
PETITION FOR WRIT OF CERTIORARI.

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QUESTIONS PRESENTED FOR REVIEW.

I. Whether the Supreme Judicial Court of the Commonwealth of Massachusetts violated the First and Fourteenth Amendment rights of the Petitioners when it compelled the Petitioners to include, in their privately organized Parade, a message the Petitioners deemed unwanted and antithetical?

II. Whether Petitioners' refusal to include a gay, lesbian and bisexual message within a private parade can be declared unlawful discrimination by the government without violating the Petitioners' First and Fourteenth Amendment rights as guaranteed by the United States Constitution?



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PETITION FOR WRIT OF CERTIORARI.

Petitioners, John J. Hurley and the South Boston Allied War Veterans Council, respectfully pray that a writ of certiorari issue to review the judgment and opinion of the Supreme Judicial Court of the Commonwealth of Massachusetts entered on March 11, 1994.

Opinions Below.

The Opinion of the Supreme Judicial Court for the Commonwealth of Massachusetts in *Irish-American Gay, Lesbian and Bisexual Group of Boston & others v. City of Boston*, SJC-06498 (July 11, 1994), is attached hereto in the Appendix C to the Petition for Writ of Certiorari (C 1). The Opinion and Judgment of the Superior Court of the Commonwealth of Massachusetts, *Irish-American Gay, Lesbian and Bisexual Group of Boston v. City of Boston*, South Boston Allied War Veterans Council, and John J. Hurley, Superior Court Civil Action No. 92-1518, (December 24, 1993) is attached hereto in the Appendix B to the Petition for Writ of Certiorari (B 1).

Jurisdiction.

On March 11, 1994, the Supreme Judicial Court of the Commonwealth of Massachusetts affirmed the Judgment and Order of the Superior Court, dated December 24, 1993. See Appendices C and B, respectively. A Petition for Rehearing, after extensions of time granted by the Supreme Judicial Court, was timely filed and was denied on July 26, 1994. See Appendix D.

The jurisdiction of this Court is invoked under 28 U.S.C. § 1257 (a).

Constitutional Provisions Involved.

This case involves portions of the First and Fourteenth Amendments to the Constitution:

“Congress shall make no law . . . abridging the freedom of speech . . . ”

U.S. Constitution, Amendment I.

"Nor shall any state deprive any person of life, liberty, or property without due process of law"

U.S. Constitution, Amendment XIV, § 1.

Statutes Involved.

The statute involved is Massachusetts General Law chapter 272, sections 92A and 98. M.G.L. c. 272 §§ 92A and 98.

Statement of the Case.

On November 15, 1993, Respondent, Gay, Lesbian, & Bisexual Group of Boston (GLIB) sued the Respondent, City of Boston, and Petitioner, Allied War Veterans Council of South Boston (Veterans) and John J. Hurley, individually alleging (a) that the Petitioners had lawfully excluded GLIB from the 1992 and 1993 St. Patrick's/Evacuation Day Parades in South Boston, in violation of Massachusetts penal statute G.L. c. 272, §§ 92A & 98, the First and Fourteenth Amendments to the U.S. Constitution, and articles 1 and 16 of the Massachusetts Declaration of Rights; and (b) that the Veterans were state actors, and thus, GLIB's exclusions constituted state action under the Fourteenth Amendment and violative of GLIB's First Amendment rights. The Veterans argued that theirs was a privately funded, permitted parade, protected by the First and Fourteenth Amendments to the U.S. Constitution, and fully reflective of their traditional religious and social values.

The Federal question regarding the First and Fourteenth Amendments was raised by the Veterans in the trial court. "The Veterans argue that their Parade is a form of speech protected by the First Amendment via the Fourteenth Amend-

ment, and that their speech will be effectively diluted or distorted if they are required to include GLIB in their Parade." Appendix B at B23. The Veterans cross claimed against the City for unlawful interference with their Parade.

On December 15, 1993, the Superior Court issued its findings of Fact, Rulings of Law, and Order of Judgment. The court found no state action and dismissed all claims against the City. Since the Petitioners were private actors, the court dismissed GLIB's First and Fourteenth Amendment claims against the Petitioners. The court found the Veterans' privately-funded, permitted parade to have no expressive purpose, to be a public event, a place of public accommodation and an open recreational event, and that the Veterans discriminated against GLIB on the basis of values and messages, i.e. sexual orientation.

After an analysis of the content of the Parade and a review of the participants, the trial court found it "impossible to discern any specific expressive purpose entitling the Parade to protection under the First Amendment." Appendix B at B25. The court further found that "the Veterans' right of expressive association is not unduly burdened by the statute's (M.G.L. c. 272) restriction." Appendix B at B25. The Veterans were permanently ordered and enjoined: a) from discrimination against GLIB on the basis of sexual orientation with respect to participation in the Veterans' annual St. Patrick's Day/Evacuation Day Parade; and b) to accommodate in the Parade in all respects representatives of GLIB on the terms and conditions generally applicable to all other parade participants.

On March 11, 1994, a majority of the Justices of the Supreme Judicial Court of Massachusetts affirmed the Judgment of the Superior Court dated December 24, 1993. (SJC No. 94-64948) Appendix C.

The Federal question regarding the claim of infringement of the Veterans' First and Fourteenth Amendments rights was again presented and considered by the Supreme Judicial Court

on appeal. The S.J.C., applying the standard of whether the findings below were "clearly erroneous", upheld the lower court's ruling that the parade was not a protected expression under the U.S. Constitution. "[T]here was no error in [the trial court's] finding that the parade was not used by the Council for expressive purposes, and that, as a result the [Veterans] could not cloak their discriminatory acts in the mantle of the First Amendment." Appendix C at C15, 16.

A dissenting opinion in the case held the parade to be protected speech, and found the trial judge's findings to be an unconstitutional, content-based classification of the speech. Appendix C at C21. The dissent further found the order of the trial court to be a "flagrant violation of the Veterans Council's First Amendment rights." Appendix C at C26.

An application to the Supreme Judicial Court of Massachusetts, was made on May 13, 1994, for Motion to Enlarge Time for Filing the Veterans' Petition for Rehearing and allowed on May 16, 1994. On July 11, 1994, the written decision of the Supreme Judicial Court of the Commonwealth of Massachusetts was issued. *Irish-American Gay Group of Boston v. Boston*, 418 Mass 238. (1994) Appendix C.

On July 26, 1994, the Supreme Judicial Court for the Commonwealth of Massachusetts considered and denied the Veterans' Petition for Rehearing. Appendix D at D1.

Reasons for Granting the Writ.

In an astounding decision which conflicts with the well settled law and doctrines of this Court, the Massachusetts courts have abdicated their duty to preserve and to protect the guarantees of its citizens' First Amendment rights, and the liberty interests and due process of law mandated by the Fourteenth Amendment to the United States Constitution. The Su-

preme Judicial Court of Massachusetts (SJC), in affirming the judgment of the trial court, ruled that: (1) a privately sponsored parade was not speech protected by the First Amendment; (2) a parade which reflected the organizers' "traditional religious and social values" was a parade without "any specific expressive purpose" (Appendix C at C6 and C13, respectively); and (3) the trial court's evaluation of the content of a parade organized by a private sponsor was merely an examination to determine if speech was involved at all. Appendix C at C16 n.20.

The affront to the First Amendment, which is now law in Massachusetts, is so great in its abridgment of the Petitioners' speech, that it resulted in the Petitioners cancelling their 1994 parade rather than showcasing a message they deemed offensive and antithetical. The dissent wrote:

"That the judge's decision and order requiring the Veterans Council to allow GLIB to march and to express itself as a group is a flagrant violation of the Veterans Council's rights is an unavoidable conclusion . . . Our holding today, while, to some, seemingly pushes us forward, really pushes us back over 200 years, to an era that lacked the protection guaranteed by the First Amendment." Appendix C at C26.

In asking this Court to grant certiorari and reverse the decision of the SJC, the Petitioners point not only to the effect a denial of certiorari will have on their First Amendment protections now and in the future, but note the effect a denial will have on First Amendment expressions elsewhere.

I. THE HIGHEST COURT IN MASSACHUSETTS HAS UNCONSTITUTIONALLY ABRIDGED THE VETERANS' RIGHTS OF FREE SPEECH GUARANTEED UNDER THE FIRST AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION.

A. *This Parade was speech protected by the First and Fourteenth Amendments.*

A parade is, by its nature, a pristine form of speech. *See, Perry Educ. Assoc. v. Perry Local Educator's Assoc.*, 460 US 37, 45, 103 S.Ct. 948, 954 (1983); *Shuttlesworth v. Birmingham*, 394 US 147, 152 S.Ct. 935, 939 (1969); *Cox v. Louisiana*, 379 US 536, 554-55, 85 S.Ct. 453, 4644-65 (1965); *Invisible Empire of the Knights of the KKK v. Mayor of Thurmout*, 700 F.Supp. 281, 286-87 (D.Md. 1988). In parades, people gather together for the purpose of expressing their message. *See, e.g., Id.* The public thoroughfares of our nation are the public fora in which the issues of the day can be debated and where individuals seek to engage in basic expressive activity, such as parading. *Ibid. Grayned v. City of Rockford*, 408 US 104, 115, 92 S.Ct. 2294, 2303 (1972) (citing *Police Dept. of Chicago v. Mosley*, 48 US 92, 94-96 (1972)); *Hague v. C.I.O.*, 307 US 486, 515, 59 S.Ct. 954, 963 (1939). Every parade is designed to convey a message. *Ibid.* As such, a parade organized by a private sponsor is the quintessential exercise of the First Amendment right of freedom of expression. *Ibid.*

New York County Board of Ancient Order of Hibernians v. Dinkins, 814 F. Supp. 358, 366 (1993) Appendix A at A18.

In the Massachusetts decision, now before this Court, Justice Nolan wrote in dissent:

Today will be regarded as a sad and frustrating day in the history of the First Amendment to the United States Constitution. Today, a majority of this court upholds, and thereby endorses, a trial judge's flagrant violation of the free speech rights of citizens of this Commonwealth. The majority acquiesces in a judge's order instructing a private group that if it wishes to express itself at all, it must include in its expression a particular idea, one with which the group does not agree. One must strain to recall or even to imagine such an obvious violation of the revered rights to free speech.

Appendix C at C17-C18.

The dissent noted that the Veterans raised the issue of free speech throughout the trial, in their memorandum and in their briefs on appeal. Appendix C at C6. The Veterans also stated that their parade was meant to "express traditional religious and social values." Appendix C at C19. The Massachusetts trial court dismissed speech on the grounds that "[g]iven the Veterans lack of selectivity in choosing participants and failure to circumscribe marchers' messages, it is impossible to discern any specific expressive purpose entitling the Parade to protection under the First Amendment." Appendix B at B25.

The Veterans clearly articulated an expressive purpose for their parade to reflect "their traditional religious and social values." Appendix C at C6. Whether the Veterans achieved their expressive purpose, however, should have been determined by the Veterans, not the courts. "The First Amendment

mandates that we presume that speakers, not the government, know best both what they want to say and how they want to say it." *Riley v. National Federation of the Blind*, 487 US 781, 790-91 (1988). "The First Amendment protects the [Petitioners'] right not only to advocate their cause, but also to select what they believe to be the most effective means for so doing." *Meyer v. Grant*, 486 US 414, 424 (1988).

Contrary to the findings of the court, the Veterans were selective in who they allowed to march. Even the SJC acknowledged that: "Participants from previous parades are sent an application for the upcoming parade. Those who have not previously participated and who inquire about participation in the parade are sent applications . . . The council votes on applications for participation in 'batches', and the council does not generally inquire into the message or views of each applicant." Appendix C at C65. The SJC glossed over these facts, relying on the findings of the trial judge that anybody could virtually show up, pay a fee and march. Appendix C at C68 n.13. At trial, however, this finding was contradicted by testimony from various parties. It was noted that between 90 and 95% of all participants were repeat participants.¹ Trial transcripts at 245, 380. The Boston Police Department testified that the police would try to evict any person or group showing up and marching without the Veterans' permission.² In a parade

¹ Trial testimony of John J. Hurley, Trial Transcript page A-380:

"Q. But the fact is, would you agree, with Mr. Lyons when he testified that about 90% to 95% of the participants in the parade have marched before?

A. Yes, that's true."

² Trial testimony of Boston Police Superintendent Thomas P. Maloney, Trial Transcript page A-234:

"Q And if there is someone in a — let's confine ourselves to the 1992 parade, Superintendent. If a group jumped into the line of march, that was not listed on the roster, and was observed by yourself or your colleagues, what next would happen?

A. We probably would have consulted with the parade organizers to find out if they approved or concurred with this other group into the parade. If they did not, we would try to eject them from the parade route."

consisting of over 10,000 marchers, the trial court could not point to a single case where a person or group showed up, paid a fee and marched without the Veterans' permission. Indeed, the very fact that the parade was a permitted event meant that the Veterans, in satisfying the City's legitimate time, manner and place concerns, had to define the size of the parade before a permit was issued. This, coupled with the fact that a parade roster is printed weeks in advance of the parade, indicating who would be marching, renders the finding of an "open recreational event" ludicrous. Appendix B at B27. These findings are subject to review by the Supreme Court. *Jacobellis v. Ohio*, 378 US 184, 190, and n. 6. (1963). In fact, under the standard laid down in *Jacobellis*, the SJC should have undertaken an independent review of the fact finding, as opposed to the application of the "clearly erroneous" test. Appendix C at 1298. See also, *New York Times v. Sullivan*, 376 US 254, 285 (1964); *First National Bank v. Bellotti*, 435 US 765, 787 (1978); *First National Bank v. Bellotti*, 371 Mass. 773, 793 (1976).

As for the finding that the Veterans did not circumscribe messages, the fact is that the Veterans excluded GLIB, ROAR (an anti-busing group), the KKK, and a truck displaying anti-gay signs, and also circumscribed the messages of the groups Mass Right to Life and NORAI (Northern Irish Aid). This exclusion and circumscription of messages was of "no legal relevance" to the SJC. Appendix C at 1296, n. 10. The Court erred in dismissing the relevance of these exclusions.³

As this Court has noted, marching and parading fall well within the sphere of conduct protected by the First Amendment.

³*Gay Veterans Association v. American Legion*, 621 F.Supp. 1510 (S.D.N.Y. 1985) (The American Legion may exclude a group of gay veterans wishing to march under self-identifying banner as privately organized parade does not become a state actor merely because it celebrates a state holiday, Veterans Day.) (*aff'd* by the Second Circuit orally from the bench Nov. 8, 1985, without written decision). See *KKK v. Mayor of Thurmont*, *infra* at 289.

Gregory v. Chicago, 394 US 111, 112 (1969); *Shuttleworth v. Birmingham*, 394 US 449, 460 (1958). "[E]ntertainment as well as political and ideological speech, is protected" *Schad v. Borough of Mt. Ephram*, 452 US 62, 65 (1981).

B. *The Courts of Massachusetts impermissibly examined, analyzed and evaluated the content of speech and expressive activity.*

The very fact-finding engaged in by the trial court was itself an impermissible and unconstitutional intrusion into the Veterans' parade and should have been reviewed by the SJC. *Jacobellis v. Ohio*, 378 US 184, 190, and n. 6 (1963).

(i) Content-evaluation and examination.

The government may not consider either content or subject matter of the speech. *Consolidated Edison Co. of N.Y. v. Public Service Comm'n*, 447 US 530, 536 (1980). "Above all else, the First Amendment means that government has no power to restrict expression because of its message, its ideas, its subject matter, or its content." *Hudgens v. N.L.R.B.*, 424 US 507, 520 (1976).

The courts of Massachusetts impermissibly extended this Court's doctrine of time, place and manner regulation by citing *Clark v. Community for Creative Non-Violence*, 468 US 288, 293, n. 5 (1984), as standing for the proposition that: "In order to rely on the protections of the First Amendment for speech or expressive association, the defendants initially had to demonstrate that the parade truly was an exercise of those First Amendment rights (citation omitted). This, the judge found, they did not do." Appendix C at C14. Of course, *Clark* did not stand for this proposition. When this Court in *Clark* wrote that "it is the obligation of the person desiring to engage in assertedly

expressive conduct to demonstrate that the First Amendment even applies," this Court was not referring to a clearly expressive activity such as a parade, but rather was referring to questionably expressive activities such as camping and sleeping. *Clark, supra*. The question was whether a rule prohibiting sleeping and camping in an area of a public park impermissibly infringed on the message of the demonstrators who asserted that sleeping and camping overnight were integral to their speech. This Court said the regulation was "clearly [a limitation] on the manner in which the demonstration could be carried out." *Clark* at 294. A time, place and manner restriction is only valid if it is content neutral, narrowly tailored to serve a significant governmental interest, and leaves open adequate alternative channels for speech. *Id.* at 293. Nowhere in *Clark* did this Court seek to determine whether the organizers of the demonstration shared common views, or whether the participants were close personal friends, or mere interested strangers. Yet, this is what the Massachusetts courts did in this case. The Massachusetts courts also cited *U.S. v. O'Brien*, 88 S.Ct. 1673 (1968), to support *Clark*, (Appendix C at C16, n.20), but in *U.S. v. O'Brien*, this Court assumed that burning a draft registration card was expressive conduct, whereas the Massachusetts courts said the Veterans parade was neither speech nor expressive conduct.

In answering the Veterans' argument that the trial court impermissibly evaluated content, the SJC noted that the trial judge merely "examined whether there existed speech or any other activity protected by the First Amendment." Appendix C at C16 n. 20. The trial judge went much further. He not only examined the relationship of the parade organizers to the participants, but also examined the relationship of the participants to each other, going so far as to speculate about the motives and viewpoints of the participants in the parade. Appendix B at B24. The trial judge concluded: "A proper celebration of

St. Patrick's and Evacuation Day **requires** diversity and inclusiveness." Appendix B at B24 (Emphasis supplied). "Diversity **should** be the hallmark of their parade." (Emphasis supplied) Appendix B at B28. The SJC dissent characterized this last statement as a "crude regulation of the content." Appendix C at C26.

The SJC improperly endorsed the examination of the content, organization and viewpoints in the Petitioners' 1993 Parade. The trial court, for its part, simply ignored the Veterans' freedom of speech claims. The denial of federal rights by a state requires an independent examination by this Court of the whole record, as the judgment constitutes a forbidden intrusion of free expression. *See New York Times v. Sullivan*, 376 US 254, 285 (1964); *Jacobellis v. Ohio*, 378 US 184 (1963). This is especially so, when the examination is based on an analysis founded on errors of fact, surmise, conjecture and speculation. *E.g.*, Appendix C at C12, n.13 and C25 n.4.

The trial judge conducted an inappropriate appraisal of the facts, and formed an opinion relating to the content of the Petitioners' parade, *see, Forsyth County v. Nat. Movement*, 112 S.Ct. 2395 (1992); *Boos v. Barry*, 485 US 312, 334 (1988).

(ii) The SJC and Expressive Association.

Although the Veterans repeatedly raised their free speech rights, Appendix C at C4, and repeatedly argued that their Parade was their expression, their speech, Appendix C at C19, n.1, and C4, the trial court reduced the Veterans' claims to one of expressive association:

The Veteran Council contends that it may lawfully exclude GLIB because neither the public accommodations statute nor the 14th Amendment applies to its Parade. The Veterans argue that the Fourteenth Amendment is irrelevant because there is no state

action; and the statute is inapplicable because the Parade is not a place of public accommodation, and because application of it would be an impermissible infringement of the Veterans' constitutional right of expressive association.

Appendix B at B2.

"It is this right [expressive association] that the Veterans claim would be unconstitutionally burdened by application of the public accommodation statute." Appendix B at B23. The trial court egregiously ignored the Veterans' freedom of speech claims.

The trial court also mischaracterized the expressive association running the Parade. It was uncontroverted that the Veterans Council is an expressive association. The trial court, however, viewed the parade itself as an association comprised of parade participants and parade organizers.

Where, however, the association consists of '[s]trangers to one another . . . and [the association] admits all who are willing to pay the admission fee, . . . such a coming together to engage in [a] recreational [activity] . . . is not protected by the First Amendment.' *Dallas v. Stranglin*, 490 US 19, 26, (1989). In the instant case, the parade is more akin to a 'social association.' *See Dallas, supra*. Participation in the parade is not limited on the basis of similarity of viewpoints.

Appendix B at B24.

Unless the trial and Supreme Judicial Court believed that the Allied War Veterans Council was itself a group of strangers to one another coming together in a parade with no expressive

purpose, who else but participants and organizers could the courts have been referring.

The trial court cited *Dallas v. Stranglin* to make the point that the parade was a social, nonexpressive association. In citing *Dallas*, the Massachusetts trial court stretched its reasoning to embrace the facts of a dance hall case, and to apply those facts to a parade. In contrast, in a parade case with virtually identical facts, *AOH v. Dinkins*, the court explicitly declined to reach the issue of expressive association, and instead decided that case solely on freedom of speech.⁴

The Allied War Veterans Council clearly articulated a message. Appendix C at C6 and C19. Yet, the trial court and the SJC noted that the parade was more akin to a "social association". Appendix B at B29. The Court also noted that the Parade was comprised of diverse groups espousing a myriad of themes. Appendix B at B7 and B24. The Court stated "[c]ontact between the Veterans and the various participants is casual, often occurring at best, a few times a year . . . no argument has been made that the Veterans share a personal aspect of their lives with the various participating groups." Appendix B at B23 at n.26. Beyond a doubt, the trial court and the SJC erred in defining the expressive association as parade organizers and their invited participants.

⁴In *AOH v. Dinkins*, federal judge Duffy distinguished the AOH parade from the Veterans' parade, as the latter had been described by Massachusetts Judge Zobel. Zobel, in February of 1993, described the Veterans as mere "custodians of a civic celebration" and the Veterans' 1992 parade as requiring "detailed participation by City agencies in planning and execution." Appendix A at A23. Judge Zobel identified the issue just prior to the March 1993 parade as follows: "Defendants want a 'traditional parade' expressing their 'values'. They regard Plaintiffs' views as antithetical to those values and to the ethnic-religious component of the parade. Thus, allowing Plaintiffs to participate in the parade would impermissibly conflict with Defendants' rights of expression under the federal and Massachusetts Constitutions." Zobel Order of February 19, 1993. In December of 1993, however, Massachusetts trial judge Flannery ruled that the Veterans privately ran and organized the parade (Appendix B at B1 and B22), that the Veterans were not state actors, and that there was no state action involved in the parade other than the usual and customary public safety and sanitation services. Appendix B at B10, B22.

Because the trial court and the SJC applied membership cases to the parade, *Concord Rod & Gun Club v. MCAD*, 402 Mass. 716, 720, 524 N.E.2d 1364 (1988), *Directors of Rotary Int'l v. U.S. Jaycees*, 468 U.S. 609, 617 (1984), the courts improperly drew the inference that the parade was a membership organization. It is not. It is the Veterans' expressive activity – their speech. "A parade is, by its nature, a pristine form of speech." Appendix A at A18. The error of the SJC's affirmation can be found in the words of the majority in *Roberts* . . . "On its face, the Minnesota Act does not aim at the suppression of speech, does not distinguish between prohibited and permitted activity on the basis of viewpoint, and does not license enforcement authorities to administer the statute on the basis of such constitutionally impermissible criteria. Nor does the Jaycees contend that the Act has been applied in this case for the purpose of hampering the organizations' ability to express its views . . ." *Roberts* at 623-34 (citations omitted). In this case, the Veterans argued repeatedly that their parade was their speech, and that forcing the Veterans to carry a message they found objectionable was unconstitutional. Just as selective exclusion from a public forum by the state may not be based on content, *Chicago Police Dept. v. Mosley*, 408 US 92 (1972), neither may a citizen be compelled to express the ideological views of the state. *Wooley v. Maynard*, 430 US 705, 717 (1977).

(iii) No discrimination found.

The trial court found that: "The defendants' final position was that GLIB would be excluded because of its values and messages, *i.e.* its members' sexual orientation." Appendix B at B4 n.5. The trial judge confused a group's message with the group's members sexual orientation. The fact is, the Veterans never inquired into participants' sexual preferences. The Dissent made this point forcefully:

"There is no evidence in the record that the Veterans Council ever inquired into the sexual preference of any person intending to march in the parade, including members of GLIB; there is no evidence that the Veterans Council ever excluded any homosexual or bisexual; there is evidence in the record that the Veterans Council would let the members of GLIB march without a banner identifying the group." Appendix C at C25.

(iv) State Action.

"[T]he action of the state courts and judicial officers in their official capacities is to be regarded as action by the state." *Shelley v. Kraemer*, 341 US 1, 14 (1948). The actions of the state courts in Massachusetts deserve no special consideration. The Supreme Judicial Court of Massachusetts, acting under color of state law, abridged the constitutionally protected rights of free speech being exercised by the Veterans in contravention of the First and Fourteenth Amendments to the United States Constitution.

C. *The State, in compelling the inclusion of an unwanted and antithetical message, violated the Veterans' First Amendment guarantee of freedom of speech.*

Once the SJC endorsed the trial court's examination of "whether there existed speech or any other activity protected by the First Amendment", Appendix C at C16, n.20, in the Veterans' parade, and upheld the trial court's impermissible determination that there was none, the damage to the Veterans' free speech rights was completed. As the dissent noted, "[R]egardless of whether the parade has one message, ten messages, or no message at all, if GLIB's particular message

is not in the parade, it cannot constitutionally be forced on the Veterans Council. Thus, although an individual who drives his automobile may have no expressive purpose for doing so, the State cannot require him to foster a message while driving that he otherwise would not." Appendix C at C20 (citing *Wooley v. Maynard*, *supra*.) In *Sanders v. U.S.*, 518 F.Supp. 728, 730 (D.D.C. 1981), *aff'd* 679 F.2d (D.D.Cir. 1982), the federal court upheld the arrest of a single intruder on an event sponsored by another individual. In *Invisible Empire, KKK v. Mayor of Thurmont*, 700 F.Supp. 281, 287-88 (D.Md. 1988), the federal court ruled that the N.A.A.C.P. could not march in the KKK's parade. "The NAACP in this case is seeking more than attendance at the parade; they are seeking to take part in the KKK's speech itself by participating in the parade." This, the court said, was impermissible. Yet, that intrusion is precisely what the SJC affirmed in this case.

The Petitioners have a right to be free from government compulsion to adopt speech. As this case involves a privately funded and privately organized parade, the state cannot compel the Petitioners to subsidize a forum or speech by those with ideological messages rejected for inclusion by the organizers. *Aboud v. Detroit Bd. of Education*, 431 US 209 (1977). The very purpose of the First Amendment is to foreclose public authorities from assuming a guardianship of the public mind. *Thomas v. Collins*, 323 US 516, 545 (1945).

II. THIS DECISION, IF NOT REVERSED, WILL HAVE PROFOUND EFFECTS UPON THE EXERCISE OF FIRST AMENDMENT RIGHTS, NOT ONLY WITHIN MASSACHUSETTS, BUT WITHIN OTHER STATE AND FEDERAL JURISDICTIONS.

The SJC has ordered Petitioners to include in their parade a message which they view as antithetical to their theme. As Justice Nolan noted in dissent, "this court upholds, and thereby

endorses, a trial judge's flagrant violation of the free speech rights of citizens of this Commonwealth. The majority acquiesces in a judge's order instructing a private group that if it wishes to express itself at all, it must include in its expression a particular idea, one with which the group does not agree. One must strain to recall or to even imagine such an obvious violation of the revered right of free speech."

Appendix C at C18.

If the decision of the SJC is not reversed, then the government, through the simple expedient of declaring a private parade or demonstration a "public accommodation", can dilute, distort and contradict, by government order, the whole point of a privately organized and funded parade or demonstration. By the same token, the National Socialist Party could conceivably be ordered to be included, if they so desired, in a "Salute to Israel Parade"; the KKK in a private civil rights celebration honoring Martin Luther King; and Act-Up in a religious procession.

It is beyond dispute that the First Amendment rights of everyone requires that there be no forced mixing of messages. This kind of court-ordered homogenization of speech, the forced mixing of conflicting messages, is a ludicrous parody of our tradition of free speech. As Justice Nolan noted, "[t]he [trial] judge's crude regulation of the content of the Veterans Council's speech is epitomized by the last sentence of his decision: 'Inclusiveness should be the hallmark of the [Veterans Council's] parade.'" Appendix C at C26.

Such a result runs afoul of well-settled First Amendment law, as interpreted by this Court and by the Federal Circuit Courts of Appeal. "The right to use a public place for expressive activity may be restricted only for weighty reasons. Clearly, government has no power to restrict such activity because of its messages . . . For example, two parades cannot march on the same street simultaneously, and government may allow

only one." *Grayned v. City of Rockford*, 408 US 104, 115 (1972). Accord, *Sanders v. US*, 518 F.Supp. 728 (D.C.D.C. 1981), *aff'd without opinion*, 679 F.2d. 262 (D.C.Cir. 1982); *Redgrave v. BSO*, 855 F.2d. 888, 906 (1st Cir. 1988), *cert. denied*, 488 US 1043 (1980) ("We have been unable to find any case, involving the arts or otherwise, in which a state has been allowed to compel expression.")

The decision of the Supreme Judicial Court is not just an affront to the Allied War Veterans Council of South Boston or to the citizens of Massachusetts, rather it is an injury and affront to the First Amendment rights of citizens everywhere in our nation. This case and its result, the cancellation of the Veterans' St. Patrick's Day Parade in 1994, was widely covered by the media. For the courts to compel the Veterans to include in their traditionally-themed parade a group with an antithetical message is to bring us one step closer to the creation of state orthodoxy, where only politically correct speech is permissible. What the courts in Massachusetts have done is to separate multi-thematic, celebratory parades from narrowly-focused demonstrations, and to declare the former unprotected by the First Amendment.

Now, in Massachusetts, the sponsors of a parade may be exposed to criminal sanctions if their expression does not conform to what a trial judge or permitting authority deems to be a "proper", "focused", "properly sponsored" or "inclusive" parade. Such governmental control over speech is expressly forbidden by the First Amendment.

Conclusion.

Petitioners pray that certiorari should issue.

Respectfully submitted,

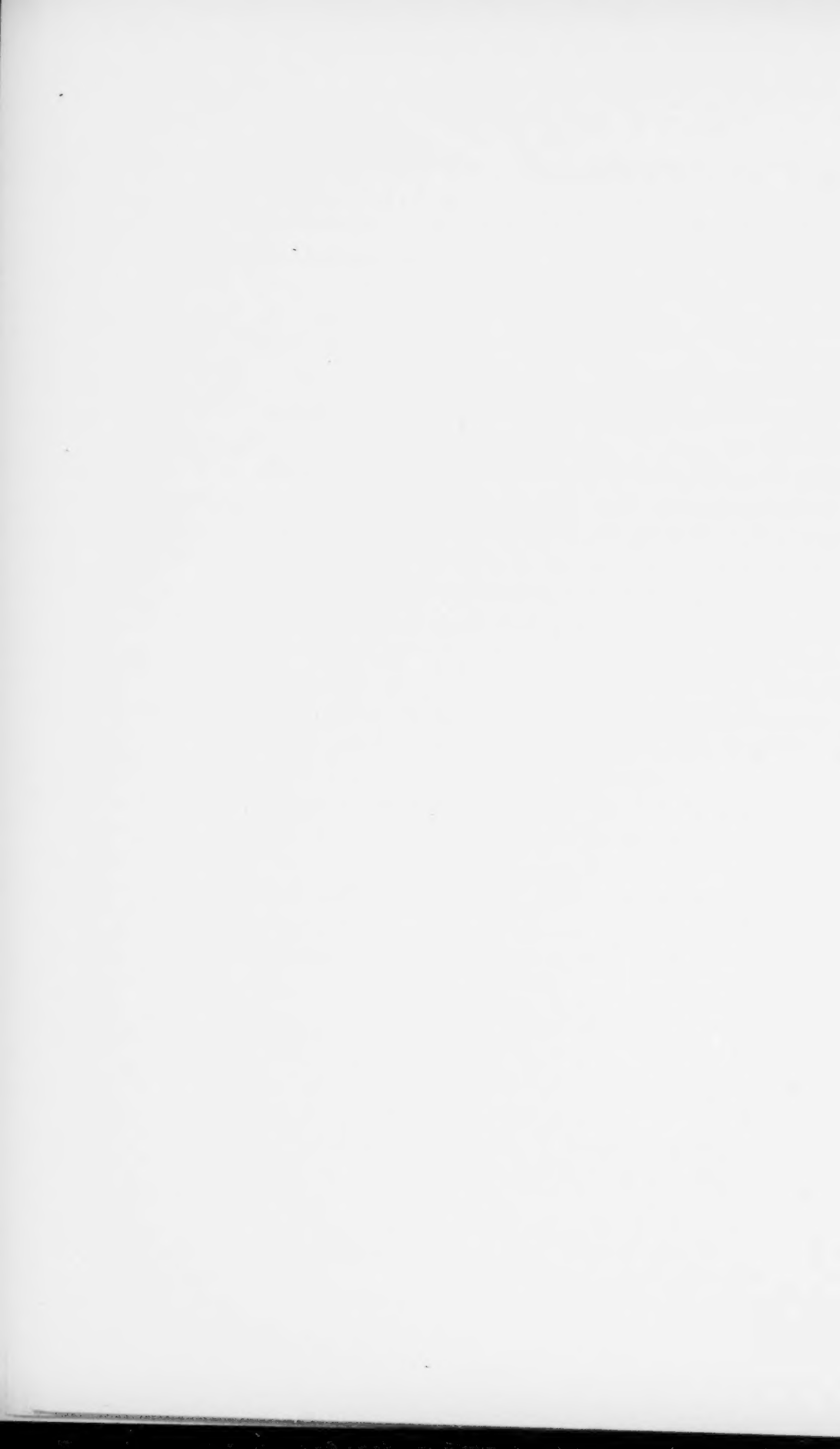
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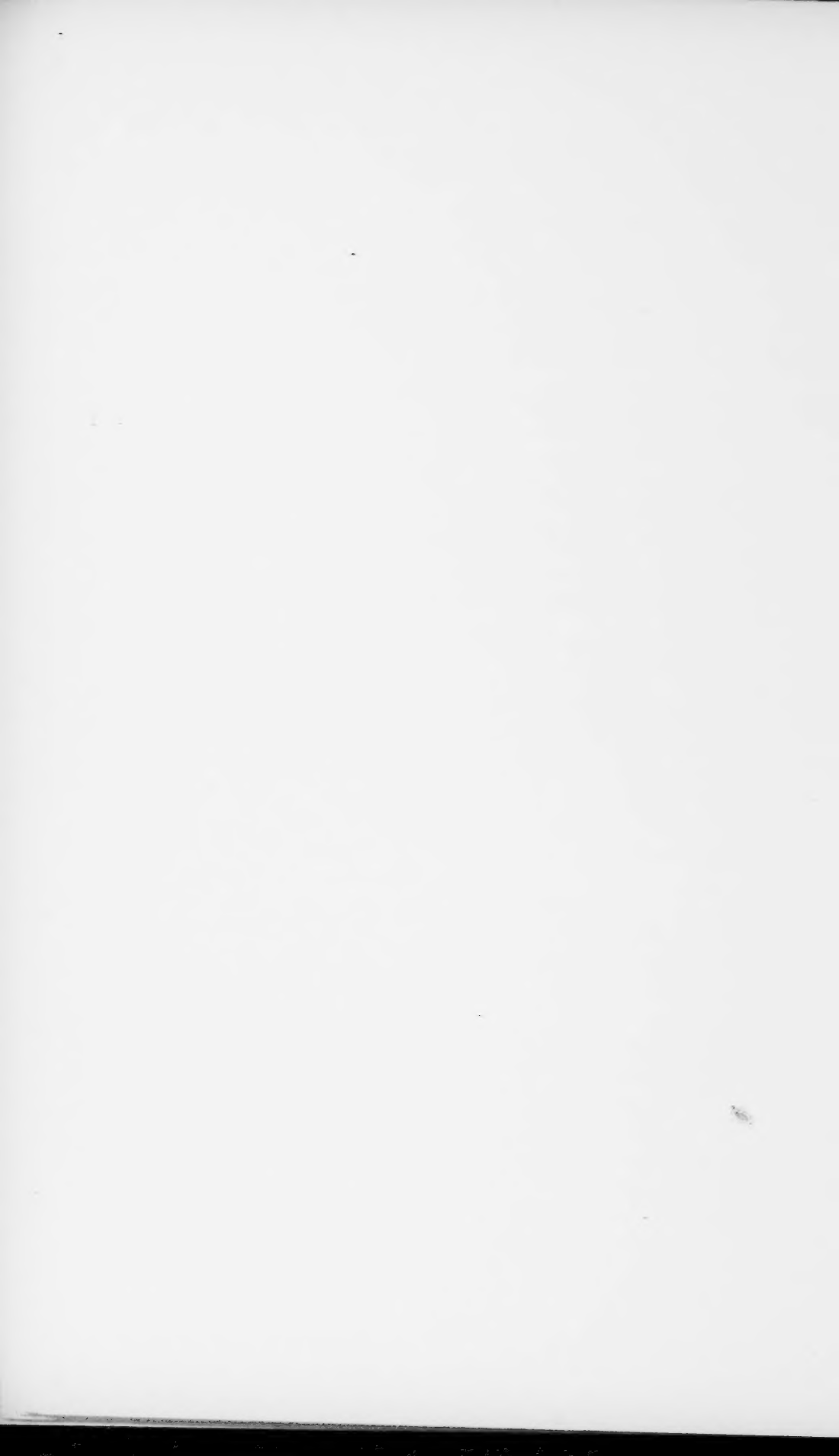
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APPENDIX.

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APPENDIX A.

**NEW YORK COUNTY BOARD OF ANCIENT
ORDER OF HIBERNIANS, Plaintiff,**

v.

**David N. DINKINS, individually and in his Capacity as Mayor
of New York City; The City of New York, The Police Depart-
ment of the City of New York, Raymond Kelly, as Police
Commissioner of the City of New York, and St. Patrick's
Day Parade Committee, Inc., Defendants.**

No. 93 Civ. 0281 (KTD).

**United States District Court,
S.D. New York.**

Feb. 26, 1993.

Sponsor of St. Patricks Day parade brought action challeng-
ing city's decision to require sponsor to allow homosexual
organization to march in parade as condition of parade permit.
The District Court, Kevin Thomas Duffy, J., held that city
violated sponsor's First Amendment free speech rights by or-
dering sponsor to allow homosexual organization to march in
parade under its own banner.

Ordered accordingly.

1. Constitutional Law 90.1(4)

St. Patrick's Day parade sponsored by private organization
was protected free speech under First Amendment. U.S.C.A.
Const.Amend. 1.

2. Constitutional Law 90.1(4)

Parade organization by private sponsor is exercise of First Amendment right of freedom of expression. U.S.C.A. Const. Amend. 1.

3. Constitutional Law 90.1(4)

In exercising First Amendment right of free speech, message intended to be conveyed by parade sponsored by private organization is to be determined by parade sponsor and not by state or city. U.S.C.A. Const. Amend. 1.

4. Constitutional Law 90.1(4)

City violated First Amendment free speech rights of sponsor of St. Patrick's Day parade by ordering sponsor to allow homosexual organization to march in parade under its own banner. U.S.C.A. Const. Amend. 1.

5. Constitutional Law 90.1(4).

Municipality may constitutionally restrict right to use public streets, as it must exercise great deal of control over traffic regulation and public safety. U.S.C.A. Const. Amend. 1.

6. Constitutional Law 90.1(4).

Municipal restrictions on use of public streets may seek to regulate only time, place and manner of parade, so long as those restrictions are justified without reference to content of regulated speech, are narrowly tailored to serve significant governmental interest, and leave open ample alternative channels for communication of information. U.S.C.A. Const. Amend. 1.

7. Constitutional Law 90(3)

If government's purpose underlying regulation is justified without reference to content of regulated speech, then incidental infringement of First Amendment is constitutional, notwithstanding disparate impact. U.S.C.A. Const.Amend. 1

8. Constitutional Law 91

Implicit in right to engage in activities protected by First Amendment is corresponding right to associate with whomever one chooses; this freedom of association embraces concomitant right not to associate with whomever one chooses. U.S.C.A. Const.Amend. 1.

Gleason & Mathews, New York City (Ernest L. Mathews, Jr., Maura R. Cahill, Paul H. Hugel, of counsel), for plaintiff.

O. Peter Sherwood, Corp. Counsel of the City of New York, New York City (Florence A. Hutner, Lorna B. Goodman, Asst. Corp. Counsels, of counsel), for defendants David N. Dinkins, The City of New York, The Police Dept. of the City of New York, and Raymond Kelly.

Gilroy Downes Horowitz & Goldstein, New York City (Lawrence C. Downes, of counsel), for defendant St. Patrick's Day Parade Committees, Inc.

Shearman & Sterling, New York City (R. Paul Wickes, Clare O'Brien, of counsel), for intervenors Irish Lesbian and Gay Organization.

New York Civil Liberties Union Foundation, New York City (Norman Siegel, Arthur N. Eisenberg, of counsel), for amicus curiae.

Burlingham Underwood, New York City (John G. Ingram, Philip A. Nemecek, of counsel), for amicus curiae St. Patrick's Society of Brooklyn, St. Patrick's Society of the Borough of

Queens, United Irish Counties Ass'n of New York, Inc. and The Grand Council of United Emerald Societies, Inc.

Wilmer, Cutler & Pickering, Washington, DC (Thomas Clark, Gary Born, of counsel), for amicus curiae Religious Coalition and Parade Coalition.

Putney, Twombly, Hall & Hirson, New York City (Norman Fassler, of counsel), for amicus curiae Religious Coalition and Parade Coalition.

Center for Constitutional Rights, New York City (Joan P. Gibbs, Suzanne L. Shende, of counsel), for amicus curiae.

MEMORANDUM & ORDER

KEVIN THOMAS DUFFY, District Judge:

This is one of those unusual cases where the issue presented by all counsel has remained constant and clear. It is the facts surrounding the issue that seem to be in a total state of flux.

Broadly stated, the issue is whether the City of New York ("City") can compel the Ancient Order of Hibernians ("AOH")¹, a private and long-standing sponsor of New York's St. Patrick's Day Parade, to alter the message that it wishes to convey in the Parade by requiring it to include, in the Parade and under their own banner, the Irish Lesbian and Gay Organization ("ILGO"), an organization whose tenets are allegedly inconsistent with the message of the Parade's sponsors.

At my request, counsel for the parties, prepared and filed an agreed statement of uncontested facts after I held a conference on Tuesday, February 2, 1993. I have adopted as many of these agreed upon facts as possible. I scheduled argument on Monday, February 22, 1993, and was apprised that certain facts had changed. At that hearing I advised the parties not to change the facts again. No matter what protestations of good

¹ AOH in this opinion will refer to the New York County Board of the AOH. The State and National AOH organizations will be referred to as "State AOH" or "National AOH."

will the parties offered on that date, the facts have changed once again.

Indeed, one of the most difficult tasks in this matter is to get a handle on the facts and the real position of the parties. At times it seemed that the attorneys were acting as navigators attempting to get a fix on their location while aboard a melting ice flow in the midst of a tempest. Counsel for the City, for example, argued at one point, that the City would be willing to permit, without conditions, the AOH to march in a parade on some city street other than Fifth Avenue on March 17th at 11:00 A.M. See City Defendants' Memorandum of Law In Opposition to Plaintiff's Motion for Summary Judgment and In Support of City Defendants' Cross-Motion for Summary Judgment ("City's Mem.") at 13; Hutner Affidavit ¶ 4 and Exh. A, dated Feb. 11, 1993. The City's latest position, however, is that the City would deny the AOH the Parade permit unless AOH "includes the Irish Lesbian and Gay Organization in the parade under its own banner." See Letter to this court from Corporation Counsel, dated Feb. 17, 1993.

At one point, over a year ago, the AOH argued to Judge Pierre Leval of this court that there was a waiting list of organizations who wanted to participate in the St. Patrick's Day Parade and that ILGO would have to wait its turn to be considered for inclusion in the Parade. Judge Leval denied relief to ILGO for various reasons including, in part, because he believed the AOH had a valid waiting list and ILGO could not jump in front of other organization applicants who precede it on the list. *ILGO v. N.Y. State Board of Ancient Order of Hibernians*, 788 F.Supp. 172, 179 (S.D.N.Y. 1992). Yet, it may well be that the "waiting list" was merely a sham and an "attempt to diffuse the situation," because the AOH has now stated that under no circumstances would they allow ILGO to march. Transcript, Argument held February 22, 1993 ("Tr.") at 7-8.

Within the last two weeks, ILGO protested to the state court that the dispute as presented there was moot. Yet, in argument to this court on February 22, 1993, ILGO took the position, without any change of facts, that this court should abstain in deference to the state court. Tr. at 59.

Statement of Facts.

The St. Patrick's Day Parade has been a fixture of the New York City scene for well over two hundred years. The first New York St. Patrick's Day Parade took place in 1762. The AOH has sponsored the Parade virtually every year out of the last one-hundred and fifty-three years, and in the years that the AOH has not conducted the Parade, an affiliated Hibernian group has done so. For over seventy years, the Parade has taken place on Fifth Avenue starting at 11:00 A.M. on the day of the Roman Catholic liturgical celebration of the feast day of St. Patrick. This day generally is March 17th, but the liturgical celebration is changed when March 17th falls on a Sunday.

The AOH is an organization comprised of Roman Catholic men of Irish descent who comply with the Roman Catholic rite's requirement that every adult must receive communion at least once during the Easter Season. The AOH has apparently set out other strictly religious requirements for membership. Every year, under the guidance of the AOH, each contingent that marches in the St. Patrick's Day Parade selects two delegates to be part of the "St. Patrick's Day Parade and Celebration Committee" ("Parade Committee"). This Parade Committee is responsible for taking care of the myriad details and arrangements inherent in running the Parade.

The AOH and the Parade Committee privately finance the Parade exclusively by means of private donations. The only public assistance received by AOH is for the police and sanitation services, which the City affords to every public gathering in the City.

The AOH, the Grand Marshal of the Parade, and members of the Parade Committee start the St. Patrick's Day celebration by attending mass at St. Patrick's Cathedral on Fifth Avenue. The Roman Catholic Archbishop of New York reviews the Parade from the steps of the Cathedral. Various units in the Parade carry banners depicting St. Patrick and other saints of the Roman Catholic Church. Notwithstanding this connection to the Roman Catholic Church, it is abundantly clear that some of the marchers participating in the St. Patrick's Day Parade are neither members of the AOH nor members of the Roman Catholic Church. Indeed, anyone who has watched the St. Patrick's Day Parade can attest to the fact that not everyone in the Parade is Irish, although at times it has been said that on St. Patrick's Day, everyone in New York is Irish. The Parade marchers generally number in the vicinity of 150,000, with between one and two million on-lookers. The New York St. Patrick's Day Parade is carried by at least one local television station and quite often parts of it are shown on national television.

The St. Patrick's Day Parade is billed as the largest annual civilian Parade in the world. The Parade celebrates, *inter alia*, freedom and Irish culture and heritage. Traditionally, elected officials have marched in the Parade regardless of their religious or political affiliation or of their position on any issue. Joint Statement of Uncontested Facts ("Jt.Stmt.") at ¶ 13.

The AOH has applied for and received a Parade permit from the New York City Police Department ("NYPD") authorizing it to conduct the St. Patrick's Day Parade on Fifth Avenue for more than seventy years. Jt.Stmt. at ¶ 9. The NYPD maintains a list of organizations that traditionally conduct annual Parades in the city and has, in the past, had the practice of granting permits to the organizations on that list. The AOH has been the organization on that list which conducts the St. Patrick's Day Parade. Jt.Stmt. at ¶ 10.

The AOH has adopted rules for the Parade to prevent any group or person from using the Parade as a vehicle or forum to pursue any political, social or commercial agenda inconsistent with the message, values and viewpoint of the AOH,² or whose purposes, principles or agenda are inconsistent with the teachings of the Roman Catholic Church. Jt.Stmt. at ¶ 12. It is the position of the AOH that the determination of whether a particular purpose, principle or agenda is inconsistent with the teachings of the Roman Catholic Church rests within the discretion of the AOH.

In October, 1990, ILGO requested that the Parade Committee allow it to march under its own banner as an affiliated unit in the 1991 Parade. The Parade Committee denied ILGO's request for various reasons. AOH now maintains that the denial of ILGO's request was occasioned by the AOH's "policy against the inclusion of groups advocating messages contrary to the parade sponsor's [message] and the Catholic Faith." Jt.Stmt. at ¶ 14.

Thereafter, the City administration urged the AOH to admit ILGO to the 1991 Parade. When AOH refused to do so, a compromise was struck whereby ILGO members were permitted to march in 1991, not as an affiliated unit, but as guests of a Hibernian unit. Mayor Dinkins marched with ILGO rather than at the head of the Parade, where the Mayor usually marches. Jt.Stmt. at ¶¶ 14, 15. All of the parties agree that the "1991 Parade experienced discord and unseemly interchanges between ILGO members and the Parade's audience." Jt.Stmt. at ¶ 16.

I cannot envision a Parade put on by any organization that would restrict its participants solely to those individuals who

²In the past, the AOH has excluded from the Parade a number of proposed contingents, including Robert Kennedy as a political office seeker; the Right-To-Life Organization; the Budweiser team of horses; etc. See Decision of Administrative Law Judge Maldonado, at 8, attached to the Hartnett Affidavit as Exh. 7.

have never sinned. Such a gathering surely would be quite small in number, and those who would hold themselves out as entitled to participate most likely would be hypocrites.

Statistically speaking (150,0009 marchers $\times$ 200 plus years), there seems to be little possibility that 1991 was the first year gays or lesbians marched in the St. Patrick's Day Parade. Indeed, it would appear that over the years the Parade participants surely included certain individuals whose sexual orientation would not meet with the public approval of the AOH and the Parade Committee. Whether the AOH and the Parade Committee knew of the sexual orientation of such participants at the time of those Parades, is unclear. The AOH maintains, however, that individual members of ILGO (and those marchers whose sexual orientation is different from that approved of by the AOH) are welcome to march in the Parade *without a banner* as guests of the various Parade contingents. Neither the City nor ILGO contest the good faith of this offer, nor is there any basis to doubt that it is the policy of the AOH and the Parade Committee. Indeed, it seems that where there have been organizations not permitted to march as identifiable organizations, their members have still been included in the Parade; *e.g.*, the Right-To-Life Organization.

I must conclude, therefore, that the true reason the AOH and the Parade Committee seek to exclude ILGO is because ILGO would insist on marching under a separate banner that would, in effect, identify the AOH as condoning sexual practices contrary to the message that the AOH believes the Parade should convey. Accordingly, I do not address the arguments regarding ILGO's exclusion on the basis of a waiting list or as a consequence of its behavior in the 1991 Parade.

With respect to the 1992 Parade, the Police Commissioner awarded the permit for the Parade to the State Branch of the Ancient Order of Hibernians ("State AOH"). This precipitated litigation in the state courts which eventually was settled with

the AOH conducting the Parade pursuant to the permit issued to the State AOH.

On January 23, 1992, the New York City Commission on Human Rights ("HRC") commenced a proceeding pursuant to the City Human Rights Law to compel compliance with §§ 8-107(2) and 8-108.1 of the New York City Administrative Code. In that proceeding the HRC alleged that the AOH discriminated against ILGO because of the sexual orientation of that group's members. A cease and desist order was sought against the AOH, and a further order was sought from the HRC for the establishment and maintenance of a parade application system for the New York St. Patrick's Day Parade under the continuing supervision of a Commission Administrative Law Judge. On February 17, 1992, ILGO was permitted to intervene as a party in the HRC proceeding. Hearings were held on March 6th and 9th, 1992, before the Commission's Chief Administrative Law Judge Rosemarie Maldonado.

On March 13, 1992, the HRC Administrative Law Judge issued a recommended decision, the conclusions of which included: "(1) that the Parade was a public accommodation subject to the Human Rights Law; (2) that plaintiff had violated the Human Rights Law by excluding ILGO in 1991; and (3) that the application of the City Human Rights statute to the Parade would violate the First Amendment rights of the Parade sponsors." Jt.Stmt. at ¶ 18.

ILGO was not permitted to march as an affiliated unit in the 1992 Parade. However, apparently at the insistence of Mayor Dinkins, ILGO was permitted to hold its own demonstration from 60th Street to 66th Street on Fifth Avenue just prior to the Parade, and was given a special place on Fifth Avenue cordoned off by the police from which to "review" the Parade. Virtually every elected city official who normally marches in the AOH Parade, chose instead to march in ILGO's Parade. Although the Mayor was ill and could not march, "he

announced that, if he could, he would march in ILGO's Parade." Jt.Stmt. at ¶ 19.

On October 27, 1992 the City Human Rights Commission rendered a final decision and order. The Commission adopted its Administrative Law Judge's recommended decision and order with respect to the first two holdings thereof, but ruled that the application of the Human Rights Law would not violate the sponsor's First Amendment rights.

Specifically, the Commission held as follows:

In order to prevail, Respondents [*i.e.*, AOH] must demonstrate that application of the Human Rights Law's prohibition against discrimination on the basis of sexual orientation to its Parade procedures would unconstitutionally infringe upon Respondents' rights of free speech, expressive association and free exercise as guaranteed by the First Amendment to the United States Constitution and/or by the New York State Constitution, Article 1, Sections 1, 3, 8 and 9. We find that Respondents have failed to make such a showing.

Respondents argue that the Parade is a celebration of Irish Roman Catholic heritage. [(footnote omitted)]. They allege that among the unwritten requirements for inclusion in the Parade is that no group admitted have a political agenda or an agenda contrary to the teachings of the Roman Catholic Church. They argue that ILGO advocates the right to pursue a homosexual lifestyle and is thus in violation of Church doctrine.

* * * * *

We disagree with the Administrative Law Judge's analysis that, under the *Roberts* test, the relief requested by Complainant cannot be granted. Rather, we find that under this test the relief requested by Complainant must be granted.

The characteristics of the Parade define the parameters of the First Amendment rights implicated. After examining the record below and reviewing the parties' comments, we find that the St. Patrick's Day Parade is a secular event which is a celebration of a broad range of values surrounding Irish heritage. In her Findings of Fact, the Administrative Law Judge found that the Parade celebrates secular, religious, cultural, historical, civic and numerous other aspects of Irish culture. . . . Respondents' associational right is thus the right to associate with persons who support the broad celebratory goals of the Parade rather than, as Respondents argue, the right to associate merely with those who adhere to any one element of Irish heritage, such as Catholicism.

* * * * *

For the above reasons, Respondents' contention that the Parade represents symbolic speech of a type or character which would be unconstitutionally altered by the inclusion of ILGO is unpersuasive.

We hold that inclusion of ILGO would not impair Respondents' right of association. The fact that the Parade is sponsored by an Irish-Catholic organization does not change the analysis here. The right of association contemplates not merely the nature of the association, but the message conveyed or the ideas expressed by way of that association. *See Roberts v. U.S.* 468 U.S. 609 [104 S.Ct. 3244, 82 L.Ed.2d 462] [(1984)].

* * * * *

In general, in like cases involving parades, the degree of exclusivity or diversity will be a factor to be considered. However, the fact that the organizers of a given parade open it to some does not necessarily mean that the state

may require them to open it to all who express an interest in participating. Thus, we may envision a scenario, perhaps even in the St. Patrick's Day Parade, where exclusion would be appropriate. This would be determined, however, on a case-by-case basis. Where a parade organizer shows that its First Amendment interests take precedence, it will prevail on the second prong of the *Roberts* test. Respondents simply have not made this showing here.

New York City Commission on Human Rights v. Ancient Order of Hibernians in America, Inc., et al., Case No.: MPA-0362 (Oct. 27, 1992) at 4-13, attached to Hartnett Affidavit at Exh. 8. (citations omitted).

It is interesting to note that in determining the question as to whether a parade can be a "public accommodation," neither the Administrative Law Judge nor the New York City Human Rights Commission makes any reference to a judicial or administrative opinion in a case involving parades. Apparently, the closest to a parade-type decision that the Administrative Law Judge and the Commission could find to support their determination that the Parade be regarded as a public accommodation is a case involving the New York City Marathon. *New York Roadrunners Club v. State Division of Human Rights*, 81 A.D.2d 519, 437 N.Y.S.2d 681 (1st Dep't 1981), *aff'd*, 55 N.Y.2d 122, 447 N.Y.S.2d 908, 432 N.E.2d 780 (1982).

An action was commenced in the Supreme Court of the State of New York, New York County, to review the decision of the City Human Rights Commission. In the same proceeding the Commission cross-petitioned for enforcement of its order. The case, entitled *Beirne v. New York City Commission on Human Rights*, was assigned to Justice Alice Schlesinger.

Meanwhile, on November 2, 1992, the AOH applied to the New York City Police Department for a parade permit allowing it to conduct the 1993 St. Patrick's Day Parade. Applications

for a permit were also filed by two other organizations; (i) the St. Patrick's Day Parade Committee, Inc. (this membership corporation is not to be confused with the Parade Committee mentioned above. It will be referred to henceforth as the "Corporate Committee"); and, (ii) the Brooklyn Night Court Emerald Society. This was the first time ever that three applications for the permit for the St. Patrick's Day Parade were submitted. Jt.Stmt. at ¶ 22.

On December 10, 1992, the Police Department, for the first time, required the applicants for the St. Patrick's Day Parade permit to submit information concerning their plans for the Parade, including the identity of all marching units. Jt.Stmt. at ¶ 23. Apparently all three of the applicants complied with this request.

The *Beirne* case was argued before Justice Schlesinger on January 5, 1993. She took the matter under submission, promising a decision during the week of January 18, 1993. Jt.Stmt. at ¶ 24. On January 8, 1993, the Police Commissioner of New York, Raymond Kelly, announced that he had awarded the permit for the St. Patrick's Day Parade to the Corporate Committee for the following reasons: "(1) that the views and practices of plaintiff [AOH] in excluding ILGO were inconsistent with the City's 'policy of inclusion'; (2) that the City Human Rights Commission had determined that 'the sponsors of the 1992 Parade, the Ancient Order of Hibernians, violated the City Human Rights Law by excluding' ILGO; and (3) that planning for the Parade needed to proceed expeditiously and could not await judicial review of the Commission decision in the *Beirne* case." Jt.Stmt. at ¶ 25.

Apparently the briefs in the *Beirne* case were filed on or about January 10, 1993. On January 11, 1993, Justice Schlesinger ruled:

In light of the City's decision as to the Award of a permit to sponsor the 1993 St. Patrick's Day Parade to an organization other than the AOH, namely, the St. Patrick's Day

Parade Committee, Inc., this court believes that the instant action, challenging an order of the Commission on Human Rights to the AOH that ILGO be given the opportunity to march in this year's Parade (*see* paragraph # 2 of the orders at page 16), is moot.

Order of Justice Schlesinger, attached to the Hartnett Affidavit at Exh. 20.

This left the AOH in a "Catch-22" position: the Police Commissioner would not issue a permit for the St. Patrick's Day Parade to the AOH unless the New York City Human Rights Commission order was judicially set aside; and, the New York State Courts refused to consider the order of the New York City Human Rights Commission unless the New York City Police Commissioner issued the permit to the AOH.

Accordingly, on January 15, 1993, the AOH started the instant action for injunctive relief under 42 U.S.C. § 1983 (the Civil Rights Act) and under the First and Fourteenth Amendments to the Constitution of the United States. Specifically, the AOH seeks to enjoin the City defendants from depriving the AOH of those rights by refusing to issue to AOH the permit to conduct the 1993 St. Patrick's Day Parade.

At a conference on February 2, 1993, I advised all of the parties that the AOH could move for temporary relief or for summary judgment (without the necessity of further formal notice) by filing its motion papers on or before February 5, 1993, with responsive papers due from the City on February 11, 1993 and any reply papers by February 16, 1993. The City was deemed to have filed a formal answer and a cross-motion for summary judgment. Accordingly, I requested the submission of a joint statement of uncontested facts. Thereafter, I permitted ILGO to appear as an intervening defendant in this case. Various *amicus curiae* requested permission to file briefs on behalf of one side or the other. All were permitted.

Originally, the Corporate Committee was a defendant in this matter. On February 11, 1993, the Corporate Committee returned to the City the St. Patrick's Day Parade permit that it had been issued. The City then solicited applications for a new permit to conduct the 1993 New York St. Patrick's Day Parade. The AOH filed the one and only timely application for the Parade permit.

On February 17, 1993, the City defendants, by their counsel, addressed the following letter to this court:

Dear Judge Duffy:

As we informed Your Honor in our letter of February 11, 1993, the facts underlying this case have changed as a result of the return of the permit granted to the St. Patrick's Day Parade Committee. Since we reopened the application process, the City received one application for a permit for the parade submitted by the Ancient Order of Hibernians.

Today, the City defendants determined that they will not grant County AOH the permit it seeks because County AOH has announced that it will not comply with the order of the New York City Commission on Human Rights dated October 27, 1992 requiring County AOH to include the Irish Lesbian and Gay Organization in the parade under its own banner. Thus, the case is not neither moot nor premature as we stated last Thursday and we respectfully request that the Court render its decision.

Letter to this court from Corporation Counsel, dated February 17, 1993.

On Thursday, February 18, 1993, I advised all the parties that I would hold a hearing on Monday, February 22, 1993 to try to sort out the issues left for decision under the changed circumstances.

During this same period (the week of February 14, 1993) the AOH, the City, the ILGO had a conference in which they discussed whether they should request Justice Schlesinger of the State Court to reconsider her decision tht the matter before her had become moot. Apparently, a conference call was made to Justice Schlesinger during which counsel for ILGO insisted that nothing had changed and asserted that the action in the New York State Supreme Court continued to remain moot. Tr. at 59. Apparently, Justice Schlesinger accepted ILGO's argument and did not change her determination as to the mootness of the *Beirne* case.

On the morning of February 22, 1993 argument was held before this court for approximately two hours. Advance notice of this argument was well publicized in the media with stories of the forthcoming argument being carried by every major New York City newspaper, and most New York City radio and television stations. No other applications for the Parade permit were filed as of the time of the argument, nor did any other parties request intervention in this case.

At the end of the argument, I once again requested of counsel to the parties that the facts within their control not be changed again so that a decision could be rendered as expeditiously as possible.

Late on that same afternoon, I received phone calls from counsel for the City defendants and the AOHO advising me that there had been two new applications for the Parade permit and that an Order To Show Cause had been signed in the State Court as to why one of the applicants should not immediately receive the Parade permit.³

³One of the new applicants, the Brooklyn Night Court Emerald Society, served the parties on February 23 with a "Motion to Intervene and In Opposition to AOH's Motion for Relief and In Support of a Motion to Dismiss" returnable on February 23 before this court. This may have been intended simply as a lark. It clearly violates the Federal Rules of Civil Procedure and the Local Rules in various ways, but particularly with regard to the proper notice required to be given to the parties. In any event, I will treat it totally as a nullity.

DISCUSSION

[1] The main problem with the logic of the decision of the City's Human Rights Commission is that it starts the analysis at the wrong end. The first question that should have been considered is not whether the New York St. Patrick's Day Parade is a public accommodation, but whether the Parade and its message constitutes speech protected by the First Amendment guarantee of Freedom of Speech. Insofar as a parade constituted protected free speech, it cannot be a public accommodation.

[2] A parade is, by its nature, a pristine form of speech. See *Perry Educ. Assoc. v. Perry Local Educator's Assoc.*, 460 U.S. 37, 45, 103 S.Ct. 948, 954, 74 L.Ed.2d 794 (1983); *Shuttlesworth v. Birmingham*, 394 U.S. 147, 152, 89 S.Ct. 935, 939, 22 L.Ed.2d 162 (1969); *Cox v. Louisiana*, 379 U.S. 536, 554-55, 85 S.Ct. 453, 464-65, 13 L.Ed.2d 471 (1965); *Invisible Empire of the Knights of the Ku Klux Klan v. Mayor of Thurmont*, 700 F.Supp. 281, 286-87 (D.Md.1988). In parades, people gather together for the purpose of expressing their message. See *id.* The public thoroughfares of our nation are the public fora in which the issues of the day can be debated and where individuals seek to engage in basic expressive activity, such as parading. *Id.*; *Grayned v. City of Rockford*, 408 U.S. 104, 115, 92 S.Ct. 2294, 2302, 33 L.Ed.2d 222 (1972) (citing *Police Department of Chicago v. Mosley*, 408 U.S. 92, 94-96, 92 S.Ct. 2286, 2289-90, 33 L.Ed.2d 212 (1972)); *Hague v. Committee for Industrial Organization*, 307 U.S. 496, 515, 59 S.Ct. 954, 963, 83 L.Ed. 1423 (1939). Every parade is designed to convey a message. *Id.* As such, a parade organized by a private sponsor is the quintessential exercise of the First Amendment right of freedom of expression. *Id.*

[3] The First Amendment guarantees an individual the right to free speech, "a term necessarily comprising the decision of both what to say and what not to say." *Riley v. Nat's Federa-*

tion of the Blind of North Carolina, 487 U.S. 781, 796-97, 108 S.Ct. 2667, 2677-78, 101 L.Ed.2d 669 (1987). In exercising this right, the message intended to be conveyed by a parade sponsored by a private organization is to be determined by the parade sponsor and not by the state or the city. *See Grayned*, 408 U.S. at 115, 92 S.Ct. at 2302; *Collin v. Smith*, 578 F.2d 1197, 1201 (7th Cir.), *cert. denied*, 439 U.S. 916, 99 S.Ct. 291, 58 L.Ed.2d 264 (1978); *Invisible Empire*, 700 F.Supp. at 286-87. To hold otherwise would give local government the right to censorship over the thoughts and speech of the people. *Id.*; *see also Pacific Gas & Electric Co. v. Public Utilities Commission*, 475 U.S. 1, 10-11, 15-17, 106 S.Ct. 903, 908-09, 911-12, 89 L.Ed.2d 1 (1986) (state could not compel company to include in its billing a third party's message it disagreed with); *Wallace v. Jaffree*, 472 U.S. 38, 48-55, 105 S.Ct. 2479, 2485-89, 86 L.Ed.2d 29 (1985) (First Amendment adopted to curtail power of Congress to interfere with individual's freedom to "express himself in accordance with the dictates of his own conscience"); *Miami Herald Publishing Co. v. Tornillo*, 418 U.S. 241, 256, 94 S.Ct. 2831, 2838, 41 L.Ed.2d 730 (1974) (forcing newspapers to print candidates' replies to editorials is an impermissible burden on editorial control and judgment); *Sherbert v. Verner*, 374 U.S. 398, 402, 83 S.Ct. 1790, 1792, 10 L.Ed.2d 965 (1963) (government may "not compel affirmance of a repugnant belief . . . nor penalize or discriminate against individuals or groups because they hold views abhorrent to the authorities"); *West Virginia State Bd. of Educ. v. Barnette*, 319 U.S. 624, 634, 63 S.Ct. 1178, 1183, 87 L.Ed. 1628 (1934) (state has no power to force individual to profess any statement of belief).

[4] The message that the AOH, as Parade sponsor, wishes to convey is to honor the patron saint of Ireland and to proclaim their allegiance to the Roman Catholic Church and its teachings. Plaintiff's Memorandum of Law In Support of Motion

for Summary Judgment or a Preliminary Injunction ("AOH Mem.") at 9.

On the other hand, the Administrative Law Judge rejected this and found that the Parade is a place of public accommodation. Decision of Administrative Law Judge Maldonado, at 2, attached to the Hartnett Affidavit at Exh. 7 [hereinafter referred to as "ALJ Maldonado Decision"]. As to the message of the Parade, the Administrative Law Judge and the City Human Rights Commission determined that:

The Parade is also a civic celebration, billed as the "largest civilian annual parade in the world" and is organized for the pleasure of all New Yorkers. It draws over 150,000 marchers and over two million spectators.

. . . [T]he Parade is "an American institution" which "celebrates the fact that all Americans, native and immigrant alike, enjoy the freedom of the City on the streets of New York and, by implication, throughout our great land." The organizers operate the Parade for the benefit of all New Yorkers and are concerned that "the total Parade . . . remain large in numbers, orderly, and colorful in order to hold the respect and admiration of the citizens of New York, retain their good will and continue to have them as its supporters."

ALJ Maldonado Decision at ¶¶ 10-11. (citations omitted).

In restating the message of the Parade the Human Rights Commission went far beyond a mere re-articulation of it. No one has suggested that the Parade sponsors and their representatives are so bereft of fluency in the English language that, if they believed that the message of the Parade should be "secular" or "American institution" or "a celebration of freedom" or even traditional values, baseball and apple pie, the Commission would have had to make the statement for them.

In fact, the message was dramatically changed in content. This the City defendants cannot do without violating the First Amendment rights of the Parade sponsors. This is so fundamental as not to require citation.

It may well be helpful, however, to remind the parties of what the United States Supreme Court held in a slightly different context:

The First Amendment protects the right of individuals to hold a point of view different from the majority and to refuse to foster, in the way [the State] commands, an idea they find morally objectionable.

Wooley v. Maynard, 430 U.S. 705, 715, 97 S.Ct. 1428, 1435, 51 L.Ed.2d 752 (1977).

The manner and means by which the message is also a matter of constitutionally protected free speech. The AOH and the Parade sponsors have made it abundantly clear that they are unwilling to accept ILGO as a separate contingent in the Parade. Indeed, they seem willing to abandon the Parade to avoid that situation. Yet, the City Human Rights Commission has ordered them to "include the Irish Lesbian and Gay Organization in the parade under its own banner." See Letter to this court from Corporation Counsel, dated February 17, 1993.

In so doing the City defendants have violated the Parade sponsor's rights to free speech. See *Invisible Empire*, 700 F.Supp. at 288. The United States Supreme Court has already held that "[c]ompelled access like that ordered in this case both penalizes the expression of particular points of view and forces speakers to alter their speech to conform with an agenda they do not set. . . . The Commission's . . . order also impermissibly requires appellant to associate with speech with which appellant may disagree." *Pacific Gas*, 475 U.S. at 9, 15, 106 S.Ct. at 908, 911. That, however, is exactly what the City

defendants are trying to do by requiring the inclusion of ILGO in the New York St. Patrick's Day Parade.

[5-7] This is not to say that a governmental regulation may never restrict a parade. A municipality may constitutionally restrict the right to use the public streets, as they must exercise a great deal of control over traffic regulation and public safety. *Shuttlesworth*, 394 U.S. at 152, 89 S.Ct. at 939. Such restrictions, however, may seek to regulate only the time, place and manner of a parade, so long as these restrictions "are justified without reference to the content of the regulated speech, that they are narrowly tailored to serve a significant governmental interest, and that they leave open ample alternative channels for communication of the information." *Ward v. Rock Against Racism*, 491 U.S. 781, 791, 109 S.Ct. 2746, 2753, 105 L.Ed.2d 661 (1980) (citing *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 293, 104 S.Ct. 3065, 3068, 82 L.Ed.2d 221 (1984)). Additionally, incidental restrictions on speech have been upheld where the purpose of the offending regulation is unrelated to the content of the expression. *Ward*, 491 U.S. at 781, 109 S.Ct. at 2746. The controlling inquiry in such cases focuses on whether the government has regulated the speech because it disagrees with its content. *Id.* Thus, if the government's purpose underlying the regulation is justified without reference to the content of the regulated speech, then the incidental infringement of the First Amendment is constitutional, notwithstanding disparate impact. *Id.*

Here the City has attempted to change the message of the Parade and the way that message would be conveyed. The imposition of such conditions can hardly be confused with the permissible restrictions that regulate time, place or manner. Thus, because there is no "content neutral" justification for the City's actions which could excuse the infringement, they violate the First Amendment.

The AOH also raises the argument that the activities of the City defendants have violated the AOH's right to freedom of

association under the First Amendment. There may well be substance to this argument.

[8] Implicit in the right to engage in activities protected by the First Amendment is a corresponding right to associate with whomever one chooses. *See Roberts v. United States Jaycees*, 468 U.S. 609, 622, 104 S.Ct. 3244, 3251, 82 L.Ed.2d 462 (1983); *Abood v. Detroit Bd. of Educ.*, 431 U.S. 209, 233-34, 97 S.Ct. 1782, 1798-99, 52 L.Ed.2d 261 (1977). This freedom of association embraces the concomitant right not to associate with whomever one chooses. *See Roberts*, 468 U.S. at 623, 104 S.Ct. at 3252 (citing *Abood*, 431 U.S. at 234-35, 97 S.Ct. at 1799-1800).

I find it unnecessary, however, to rule on this issues.

The AOH also argues that the City defendants have violated their religious freedom. I am in no way ruling on that particular issue nor do I believe that anyone can properly rule on it in the present state of this record.

Counsel have also directed my attention to a recent decision from a Massachusetts Superior Court regarding the Boston St. Patrick's Day/Evacuation Day Parade. *Irish American Gay, Lesbian, and Bisexual Group of Boston, et al. v. City of Boston, et al.*, Superior Court of Mass., Suffolk County, Civ. No. 92-1519 (Feb. 19, 1993). In the Boston case, the Court granted the Irish American Gay, Lesbian, and Bisexual Group of Boston an injunction to prevent the defendants from interfering with their participation in the parade. It is argued that this decision should persuade me to enforce the City defendants' order requiring the inclusion of ILGO in the AOH Parade.

The Boston Parade celebrates not only St. Patrick's Day, but also, Evacuation Day. Evacuation Day commemorates the March 17, 1776 departure of British troops from Boston. The parade conveys a general celebratory message in general support of "traditional values."

Although the Court pressed counsel to articulate the 'views' or 'message' [sought to be] express[ed] by means of the parade,

counsel could say nothing beyond a litany of 'traditional values,' which included the Red Sox and apple pie.

Memorandum and Order of the Court at *k* 2. The fact that this "traditional values," multi-purpose parade requires "detailed participation by city agencies in planning and execution" clearly illustrates the civic nature of the parade. From the Order of the Massachusetts Court, it appears that last year the exact same problem was before the Court and was resolved in the same way. No problem was caused thereby and no appeal was taken from the Order. In light of these factors, the Court held that the defendant permit-holders were "the custodians of a civic celebration."

The AOH and the Parade Committee, on the other hand, are private sponsors of the New York St. Patrick's Day Parade and seek to convey a real message in a parade devoted solely to celebrating St. Patrick's Day with minimal city involvement. The AOH, unlike the Boston sponsors, most certainly are not the "custodians of a civic celebration." I find this decision to be totally inapposite to the instant case.

In sum, in the case at bar involving only the New York St. Patrick's Day Parade, this court holds that the ruling of the City's Human Rights Commission is violative of the First Amendment in two aspects: (1) by rejecting the message that the AOH claimed for the Parade and by substituting its own version of what the Commission thought the message of the Parade was or should be, the City defendants have attempted to dictate what the Parade sponsors would think; and, (2) by forcing the inclusion of ILGO in the parade, the Commission sought to dictate how the Parade sponsors would express their thoughts. Such activity (telling citizens what they must think and how they must express themselves) is something one would expect from the "Thought Police" described by George Orwell. The humor of naming the thought police the "Human Rights Commission" is particularly Orwellian.

This court does not mean to suggest that the members of the City Human Rights Commission intentionally set out to violate the First Amendment to the Constitution. Surely, they are good persons, motivated by good intentions. But it is the American way for political leaders to seek to convince citizens of the correctness of some view by persuasion and not by fiat.

This court holds no brief for either side in this controversy. However, everyone should recognize that the undermining of the freedom of any individual is the undermining of the freedoms of us all. See *Collin v. Smith*, 578 F.2d 1197, 1210 (7th Cir. 1978), *cert. denied*, 439 U.S. 916, 99 S.Ct. 291, 58 L.Ed.2d 264 (1978). Suffice it to say that the job of this court is to uphold the Constitution of the United States and that is all I am trying to do.

THE REMEDY

Perhaps, because of the haste with which this case was brought on, without even formal motion papers, or the time pressure caused by the fact that the date for the Parade is so close at hand, no one has discussed the relief which should be granted. The demand in the Complaint requests this court to:

(a) Preliminarily and permanently enjoin City defendants from continuing the acts, practices, and policies complained of herein which violated plaintiff's right to freedom of speech, expression, association and free exercise of religion as guaranteed by the First and Fourteenth Amendments to the United States Constitution;

(b) Preliminarily and permanently enjoin City defendants from continuing the acts, practices, and policies complained of herein which violate 42 U.S.C. §§ 1983;

(c) Direct Defendants Police Commissioner and Police Department to revoke, cancel and annul the permit issued to the Defendant Committee to parade on Fifth Avenue on

March 17, 1993 and compel said City defendants to issue a permit to plaintiff to conduct a parade on Fifth Avenue on March 17, 1993;

(d) Grant a permanent injunction against the City defendants prohibiting them from obstructing or interfering with plaintiff's conducting of the Parade;

(e) Award attorney's fees to the plaintiff as authorized by 42 U.S.C. § 1988; and

(f) Grant such additional and further relief as the court deems just and equitable.

Complaint, *ad damnum* clause at 11.

The memorandum of the AOH submitted on its motion claims that it "is entitled to summary judgment granting a permanent injunction. In the alternative, plaintiff's motion for a preliminary injunction should be granted. . . ." AOH's Mem. at 18.

Clearly, summary judgment is inappropriate in a case such as this where the facts have seemed to shift as the desert sands in the midst of a wind storm. See *Anderson v. Liberty Lobby, Inc.*, 477 U.S. 242, 250, 106 S.Ct. 2505, 2511, 91 L.Ed.2d 202 (1986); *United States v. Diebold, Inc.*, 369 U.S. 654, 655, 82 S.Ct. 993, 993, 8 L.Ed.2d 176 (1962). This leaves the question as to whether a preliminary injunction should be issued to stop the City's violation of the AOH's constitutional rights to free speech. As I have outlined above, it is clear that the City has violated the AOH's right to freedom of speech. Normally a court only has to determine that a constitutional right is being violated as to one of the parties for an injunction to issue. In the instant case, however, entities other than the AOH also have constitutional rights which must be considered.

ILGO has not requested anything other than inclusion in the AOH Parade. It may be politic for the City to offer some other perquisite to ILGO, but this court cannot fashion any relief what-

soever for ILGO since it has failed to ask for any relief. One thing is certain, however, no one can force the inclusion of ILGO in the AOH Parade.

Nor can this court fashion any relief whatsoever for the other applicants for the St. Patrick's Day Parade permit because neither of them have filed proper motions to intervene in this court.

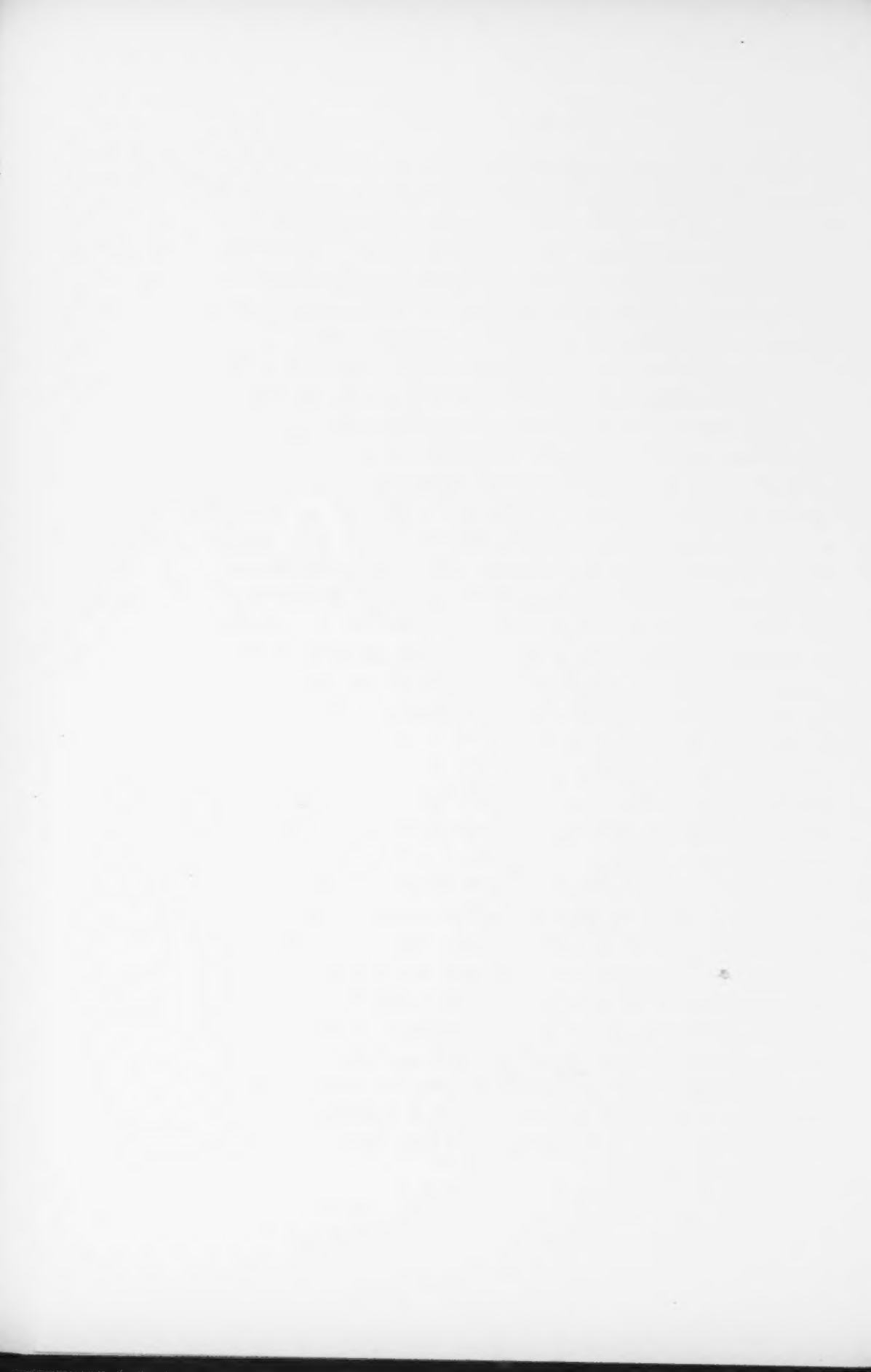
The last question then is what relief must be granted to the AOH. Over the years, the City has maintained a file of organizations entitled to parade permits. Indeed, Chief Judge Motley of this court in another parade case involving New York City said:

[The City] as a matter of administrative policy, reserves certain routes, dates, times and places for what have become annual events. For instance, a parade permit is reserved for the New York County Board of the Ancient Order of Hibernians for the St. Patricks [sic] Day Parade on March 17. A permit will be issued for no other parade on Fifth Avenue other than the Gay Pride Parade on the last day of June.

Gay Veterans Association, Inc. v. The American Legion—New York County Organization, 621 F.Supp. 1510, 1516 (S.D.N.Y. 1985).

If it were not for the intervention of the patently unconstitutional Human Rights Commission decision in this matter, the AOH would have the permit to conduct the 1993 New York St. Patrick's Day Parade. It is entitled to that as preliminary relief; along with an order directing the City not to interfere with the conduct of the AOH's 1993 New York St. Patrick's Day Parade by requiring the inclusion of any contingent which has not been approved by the AOH and the Parade Committee. This order is preliminary in nature and is intended to cover only the 1993 New York St. Patrick's Day Parade.

SO ORDERED.



B1

APPENDIX B.

COMMONWEALTH OF MASSACHUSETTS

SUFFOLK, ss.

SUPERIOR COURT
CIVIL ACTION
No. 92-1516

IRISH-AMERICAN GAY, LESBIAN
AND BISEXUAL GROUP OF BOSTON,¹
Plaintiff,

v.

CITY OF BOSTON, SOUTH BOSTON ALLIED WAR
VETERANS COUNCIL, AND JOHN J. "WACKO" HURLEY,²
Defendants.

FINDINGS OF FACT, RULINGS OF LAW, AND
ORDER FOR JUDGMENT

This case involves the claimed right of the plaintiff, Irish-American Gay, Lesbian and Bisexual Group of Boston (GLIB), to march in Boston's annual St. Patrick's/Evacuation Day Parade (Parade) over the opposition of the defendants, South Boston Allied War Veterans Council (Veterans or Veterans Council), who organize and run the Parade. GLIB contends that its exclusion from the Parade violates G.L. c. 272, §§ 92A and 98, which prohibit sexual orientation discrimination in places of public accommodation. GLIB also alleges that the Veterans's exclusion of GLIB from the Parade abridges GLIB

¹ By and through Timothy Daley and Cathleen Finn, individually and as representatives of the Irish-American Gay, Lesbian and Bisexual Group of Boston.

² John J. "Wacko" Hurley is named as a defendant both individually and as a representative member of the South Boston Allied War Veterans Council.

members' constitutional rights to freedom of expression and association and denies them equal protection of the laws as guaranteed by the First and Fourteenth Amendment to the United States Constitution and Articles 1 and 16 of the Massachusetts Declaration of Rights. GLIB seeks declaratory and permanent injunctive relief. The Veterans Council contends that it may lawfully exclude GLIB because neither the public accommodations statute nor the 14th Amendment applies to its Parade. The Veterans argue that the Fourteenth Amendment is irrelevant because there is no state action; and the statute is inapplicable because the Parade is not a place of public accommodation, and because application of it would be an impermissible infringement of the Veterans' constitutional right of expressive association.

The City of Boston (City) is also a defendant. GLIB alleges that the Parade is subject to the 14th Amendment, and therefore exclusion of it on account of its sexual orientation offends the equal protection clause and interferes unlawfully with its freedoms of association and expression. The Veterans cross-claim against the City for its unlawful interference with their Parade. The City denies that the Parade is a state action event and denies the Veterans cross-claim allegations.

On the basis of a four-day bench trial, which heard 12 witnesses and received 113 exhibits, I make the following findings of fact and conclusions of law as required by Mass. R. Civ. P. 52(a).

Discussion.

GLIB alleges that by denying its members the right to register for and march in the 1993 Parade because of their sexual orientation, both the City and the Veterans violated G.L. c. 272, §§ 92A and 98 (the public accommodations law). Section 98 prohibits "any distinction, discrimination or restric-

tion on account of . . . sexual orientation . . . in any place of public accommodation, resort or amusement" and the aid or incitement thereof. G.L. c. 272, § 98.

In January of 1992, Barbra Kay and others³ founded the Irish-American Gay, Lesbian and Bisexual Group of Boston ("GLIB"). As the name tells, GLIB is an organization of Irish-Americans who are gay, lesbian, or bisexual, and their supporters. A social organization, GLIB was formed to march in the St. Patrick's/Evacuation Day Parade. GLIB's purposes were threefold: to express its members' pride in their dual identities; to demonstrate to the Irish-American and to the gay, lesbian, and bisexual communities the diversity within those respective communities; and to show support for the Irish-American gay, lesbian, and bisexual men and women in New York City ("ILGO" members) who were seeking to participate in the New York St. Patrick's Day Parade. GLIB has regular meetings about once a month, produces a newsletter for members, maintains a voicemail box, and has published an informational brochure. GLIB members also participate in various cultural and social activities, including the 1993 Dorchester Day Parade and a fundraising walkathon for the AIDS Action Committee.

When the Veterans initially denied GLIB's application to participate in the 1992 Parade, they cited "safety reasons and insufficient information regarding [the] social club." Exh. 72. GLIB marched uneventfully in the 1992 Parade under court order.⁴ In 1993, the Veterans again denied GLIB permission to participate in the Parade, asserting the decision to exclude groups with sexual themes merely formalized that the Parade expresses traditional religious and social values. Exh. 43. At the recent trial, John J. Hurley equivocated about his reasons for excluding GLIB but ultimately testified that he would never

³ Cindy Toombs and Ellie Rudolph.

⁴ *Irish American Gay, Lesbian & Bisexual Group of Boston v. City of Boston*, C.A. No. 92-1518 (Suffolk Super. Ct., March 11, 1992, Zobel, J.).

allow GLIB to march.⁵ These shifting explanations for excluding GLIB demonstrate the pretextual nature of these excuses. *Invisible Empire of the Knights of the Ku Klux Klan v. Thurmont*, 700 F.Supp. 281, 287 (D. Md. 1988). The evidence establishes that GLIB was excluded from the Parade on account of its members sexual orientation, and I so find. *See also Meredith v. Fair*, 305 F.2d 343, 361 (5th Cir. 1962) (finding no valid, non-discriminatory reason for University to reject Meredith).⁶

In order for the public accommodations law to apply, however, the Parade must be "a place of public accommodation, resort or amusement" as defined by section 92A. The plaintiff urges that the statute should be construed broadly in order to

⁵ Hurley speaks for the Veterans Council and he testified on its behalf. He indicated that the objection to GLIB's participation was based on the belief, although unsubstantiated, that its members were also members of the ACT-UP and Queer Nation. The group's potential for being disorderly was offered as a reason for excluding it. The defendant's final position was that GLIB would be excluded because of its values and its message, *i.e.*, its members' sexual orientation. Tr. of Closing Arg. pp. 43, 51-52 (Nov. 23, 1993).

⁶ Several cases, although they are distinguishable on other grounds, illuminate the invalidity of the Veterans' purported reasons for excluding GLIB. Excluding all sexual themes not only contravenes the First Amendment's prohibition on content-based restrictions, *see Consolidated Edison Co. of N.Y. v. Public Service Comm'n of N.Y.*, 447 U.S. 530, 537-38 (1980) (prohibiting discussion of an entire topic violates the First Amendment), but is a form of discrimination itself. *See Loving v. Virginia*, 388 U.S. 1, 8 (1967) (rejecting notion that equal application of miscegenation statutes did not constitute invidious racial discrimination). Consequently, the Veterans' exclusion of GLIB under the guise of excluding all groups with sexual themes violates the public accommodations law's prohibition on sexual orientation discrimination. Moreover, denying GLIB's participation because some of its members might be associated with a radical group assumes guilt by association but is not proof of disruptiveness. *See Healy v. James*, 408 U.S. 169, 189-91 (1972) (assumed association with national group advocating violence did not constitute evidence that local group would be disruptive). The record demonstrates no basis for concluding that GLIB's participation would incite imminent lawlessness. *Brandenburg v. Ohio*, 395 U.S. 444, 447 (1969). Just as undifferentiated fear or apprehension of disturbance is not enough to overcome the right of freedom of expression, *see Tinker v. Des Moines Independent School Dist.*, 393 U.S. 503, 508 (1969), the Veterans' denial of GLIB's application due to the purported association of some of its members would not withstand scrutiny under the statute.

effectuate its remedial purpose. The Veterans argue that a parade, unlike a tavern or a barbershop, can not be a "place of public accommodation, resort or amusement." Although our courts have held preliminarily that the Parade is subject to the statute, *Irish American Gay, Lesbian & Bisexual Group of Boston v. City of Boston*, No. 93-J-183 (Mass. App. Ct. March 1, 1993, Brown, J., single justice) (affirming preliminary injunction requiring GLIB's inclusion in 1993 Parade); *Irish American Gay, Lesbian & Bisexual Group of Boston v. City of Boston*, C.A. No. 92-1518 (Suffolk Super. Ct. Feb. 19, 1993, Zobel, J.); *Irish American Gay, Lesbian & Bisexual Group of Boston v. City of Boston*, C.A. No. 92-1518 (Suffolk Super. Ct. March 11, 1992, Zobel, J.), the Veterans point to an expression of judicial doubt on the subject, *South Boston Allied War Veterans Council v. The Honorable Hiller B. Zobel*, C.A. No. 93-10509-WF (D. Mass. March 11, 1993, Wolf, J.) (noting public accommodations statute does not expressly include parades).

The statute defines a place of public accommodation, resort or amusement as: "any place . . . which is open to and accepts or solicits the patronage of the general public and, without limiting the generality of this definition, whether or not it be . . . (6) a boardwalk or other public highway; . . . [or] (8) a place of public amusement, recreation, sport, exercise or entertainment." G.L. c. 272, § 92A. As an initial matter, the Parade must be found to be "a place." *United States Jaycees v. Massachusetts Commission Against Discrimination*, 391 Mass. 594, 603 (1984). The statute specifically identifies "a boardwalk or other public highway" or "a place of public amusement, recreation, sport, exercise or entertainment" as places within the purview of the statute.

For at least the past 47 years, the Parade has traveled the same basic route along the public streets of South Boston, providing entertainment, amusement, and recreation to partici-

pants and spectators alike. Even if the examples enumerated in the statute (inn, theatre, etc.) restricted the general statutory language, which they do not, *Local Finance Co. v. Massachusetts Commission Against Discrimination*, 355 Mass. 10, 13 (1968), the public streets of South Boston can be fairly characterized as a boardwalk or a place of amusement, recreation, or entertainment during the hours of the Parade. Given the Supreme Judicial Court's directive that the statute be given a broad inclusive interpretation so that it may achieve its goal of eliminating and prevent discrimination. *Concord Rod & Gun Club, Inc. v. Massachusetts Commission Against Discrimination*, 355 Mass. 10, 14 (1968), I find that the Parade through the streets of South Boston constitutes "a place" within the meaning of G.L. c. 272, § 92A. Compare *United States Jaycees v. Massachusetts Commission Against Discrimination*, 391 Mass. 594 (1984) (finding discriminatory membership policy not subject to G.L. c. 272, § 92A because criterion of "place" not established); see also *New York Roadrunners Club v. State Division of Human Rights*, 81 A.D.2d 519, 437 N.Y.S.2d 681, 682 (1981) (route of New York Marathon found to be a place of public accommodation).

In denying the applicability of the statute, the Veterans contend that theirs is a private parade. I disagree. As in *Concord Rod & Gun Club, Inc. v. Massachusetts Commission Against Discrimination*, 402 Mass. 716, 721 (1988), the lack of genuine selectivity in choosing participants and sponsors demonstrates that the Parade is a public event. The following participants and/or sponsors were featured in the 1992 Parade: Patriot Missile Raytheon Corporation, Hallamore Clydesdale Horses, 98.5 Mix FM Radio Van, Boston Municipal Police Department, Irish Basketball Players, South Boston Resident Group, MBTA Color Guard, Vehicles and McGruff the Crime Dog, South Boston Against Drugs ("SOBAD") float, Marion Manor Seniors float, National Parks Service Rangers and Vehi-

cles, South Boston Baptist Bible Trolley float, Vietnam Era Veterans, Princeman Singing Group, Leukemia Society, City Councillors Rosaria Salerno, Albert "Dapper" O'Neil and John Nucci, WZOU 94.5 FM Trollet float, Houlihan's, Amrheim's and Irish Mist Restaurants, Shuberts Smoke Shop, Hub Video, Miss South Boston, Miss Ice-O-Rama and Miss Jr. Ice-O-Rama, Lexington Minutemen, AFL-CIO Trolley float and marchers, various high school bands, NORAD (Irish Northern Aid), Massachusetts Citizens for Life, Salem N.H. Joe Clowns, WZLX FM, WAAF FM Rock Bus, and others. The 1993 Parade featured many of the same participants and sponsors, as well as the Boston Bruins, MASSPORT, Budweiser, Mt. Washington Bank, Pepsi, various candidates for city council, various state representatives and senators, the Cycling Murrays, Citizens Committee for JFK Day, Massachusetts Water Pollution Control Association, South Boston Savings Bank, all declared and undeclared mayoral candidates in Boston, and others. Put differently, the interests and viewpoints represented are truly catholic: commercial (Budweiser), religious (Southie Baptists); political (Councillor O'Neil), eleemosynary (Leukemia Society), patriotic (Vietnam Veterans), moral (Massachusetts Citizens for Life), theatrical (Joey Clowns), athletic (Boston Bruins), public service (Massport), trade union (AFL-CIO), and so on. Indeed, since 1947 the only groups that have been excluded from the Parade besides GLIB have been the Ku Klux Klan and ROAR (Restore Our Alienated Rights).⁷ Neither of these groups, however, is protected under G.L. c. 272, §§ 92A and 98.

The Veterans Council has no written procedures, criteria, or standards for selecting participants or sponsors. Applications for participation in the next year's Parade are sent to all previous

⁷ The Veterans denied ROAR permission to participate based on its anti-busing message.

previous participants. Those who call to inquire about participating in the Parade are sent applications, and depending upon the monies available they are reimbursed for their travel expenses or costs of performance. Applications from new groups are voted on in batches,⁸ and the Veterans do not generally inquire into the specific messages or views of each applicant.

In addition, some groups participate in the Parade without submitting an application to the Veterans Council. For instance, in 1993, the Boston Bruins did not apply to the Veterans Council, but simply showed up at the Parade and marched. Other groups gained entrance by making a contribution to the Parade rather than filling out an application form.⁹ Thus, the procedures for admittance into the Parade are not uniformly applied.

Moreover, South Boston's St. Patrick's/Evacuation Day Parade is a public celebration of longstanding. It celebrates both St. Patrick's Day and Evacuation Day. Evacuation Day, which also falls on March 17, commemorates General Washington's initial military victory over the British in 1776, and the British departure from South Boston. Exh. 92. It is an officially recognized historical event in Massachusetts and a Suffolk County holiday.¹⁰

During the first half of this century, the South Boston Citizens Association and the City of Boston organized the various

⁸ Regardless of the formality of a vote by the Veterans Council, I find that the decision on participation (when there is a decision, *see infra*) is made by the defendant Hurley. Whether the Veterans Council genuinely votes or merely rubber-stamps Hurley's decision is immaterial because on the question of GLIB's participation Hurley and the Veterans Council are of one mind.

⁹ Participants not filling out application forms included the Massachusetts Water Pollution Control Association, newly declared mayoral candidates, and others.

¹⁰ The General Court of Massachusetts established Evacuation Day in 1938. *See* G.L. c. 6, § 12K. It is a paid holiday for city employees and a holiday for Boston Public Schools. A variety of activities take place from March 1 to March 17 to celebrate Evacuation Day, including a boxing show, the Ice-O-Rama, a basketball freethrow contest, historic and memorial exercises, a swimming event, an Irish forum, among others.

Evacuation Day activities. In 1901, the City celebrated the 125th anniversary of Evacuation Day by a parade, artillery salute, concert, and fireworks display, among other events. In 1947 Mayor James Michael Curley granted the Veterans Council authority to organize and conduct the Parade.¹¹ Since that time, the City has annually granted the Veterans a parade permit.¹² No other applicant has applied for the permit.

Over the years, the Parade has featured as many as 20,000 participants and as many as 1,000,000 spectators. In 1992, the Parade featured about 10,000 participants and 750,000 spectators. The 1993 Parade, postponed due to inclement weather, had fewer than 10,000 participants, about 400,000 spectators, and was aired live by Boston's community access cable television channel. The Parade is one of the six largest parades held in Boston annually, and the largest New England event for Irish-Americans, their friends, and well-wishers.

Given the lack of selectivity exerted by the Veterans over the Parade participants and sponsors, as well as the Parade's historical roots, I conclude that the Parade is a public event. *Concord Rod & Gun Club, Inc. v. Massachusetts Commission Against Discrimination*, 402 Mass. 716, 721 (1988). As such, I find that the Parade constitutes a public accommodation within the meaning of G.L. c. 272, § 92A. Consequently, the Veterans' exclusion of GLIB based on the sexual orientation of its members violates the public accommodation statute.

By its terms, G.L. c. 272, § 98 also forbids aiding or inciting discrimination based on sexual orientation in places of public

¹¹ The Veterans Council is an unincorporated association, consisting of members who are elected from various South Boston Veterans of Foreign Wars, American Legion, and Disabled Veterans Posts.

¹² The City of Boston Transportation Department (BTD) has authority to issue permits for all parades within the City of Boston. Parades are lawful only if the BTD has issued a permit for it. Acts, 1929, c. 263, § 2 as amended; Rules and Regs. of BTD, Art. VIII, § 1 as amended through Jan. 2, 1988. Neither the BTD nor the City charge a fee for parade permits.

accommodation, resort or amusement, and GLIB alleges that the City by its conduct has violated the statute. Did the City's involvement in the 1993 Parade constitute aiding or inciting the Veterans in their violation of GLIB's rights under the public accommodations statute?¹³

The following facts were adduced at trial. The City, through the BTB, provides services for the six largest parades in Boston: posting "no parking" signs along the route, ticketing and towing vehicles along the route, and occasionally erecting barriers or roping the route. The City also provides myriad services through the Office of Business and Cultural Development to any parade sponsors at their request. These services include the use of the City's printing services and planning and organizational assistance. Additionally, the City provides police, fire, emergency, and public works services to every parade or function in the City comparable to the Parade.

Although the City's involvement dates back to the Parade's beginning, over the years the City has divorced itself from the Parade. Thus, for the 1993 Parade, the City's involvement consisted of the participation of city vehicles such as fire, ambulance, and police in the Parade itself. The City also supplied clean up services for the 1993 Parade costing a total of approximately \$8,000. This amount is comparable to other parades of similar size.¹⁴ Many of these services constitute rou-

¹³ The City's involvement in the 1992 Parade is not before this court as the plaintiffs failed to file a complaint before the Massachusetts Commission Against Discrimination. Since violations of the public accommodations law fall within the purview of the G.L. c. 151B, § 5, the filing of a prior complaint with the MCA is a jurisdictional prerequisite that cannot be waived. *See Ackerson v. Dennison Mfg. Co.*, 624 F.Supp. 1148, 1150 (D. Mass. 1986) (jurisdictional requirement cannot be waived); *East Chop Tennis Club v. Massachusetts Comm'n Against Discrimination*, 364 Mass. 444, 446 (1973) (G.L. c. 272, § 98 falls within the ambit of G.L. c. 151B, § 5).

¹⁴ In 1993, the Bunker Hill Day Parade route cost \$9,369.91 to clean, while the Columbus Day and Dorchester Day Parades cost \$6,189.23 and \$7,815.38, respectively.

tine functions of government *See Otway v. City of New York*, 818 F.Supp. 659, 654 (S.D.N.Y. 1993) (providing police and sanitation services for parade are a legitimate governmental function and do not constitute the establishment of religion in violation of the First Amendment).

In mid-November of 1992, GLIB notified the Mayor of its intention to march in the 1993 Parade. On the same day, Richard A. Dimino, Commissioner of the BTB, wrote to the Veterans asking them to submit their 1993 permit application by mid-December and asking whether they planned to abide by the 1992 court order. The Veterans refused to state whether they would comply with the 1992 order and demanded that the BTB immediately issue the 1993 permit.

In determining whether to issue a permit, the City may consider only time, place, manner, and public safety. *See Cox v. New Hampshire*, 312 U.S. 569, 576 (1941).¹⁵ The City may not consider either the content or subject matter of the speech in its decision to grant a permit. *Consolidated Edison of N.Y. v. Public Service Comm'n of N.Y.*, 447 U.S. 530, 536 (1980).

For while a municipality may constitutionally impose reasonable time, place, and manner regulations on the use of its streets and sidewalks for First Amendment purposes . . . and may even forbid altogether such use of some of its facilities . . . what a municipality may **not** do under the First and Fourteenth Amendments is to discriminate in the regulation of expression on the basis of the content of that expression. . . . Above all else, the First Amendment means that government has no power to restrict expression because of its message, its ideas, its subject matter, or its content.

¹⁵ Acts, 1929, c. 263, establish the Boston Traffic Commission and define its powers. The BTB has its own rules and regulations as well which set forth other considerations. *See BTB, Rules and Regs.*, Art. VIII, § 2(a) and (b).

Hudgens v. National Labor Relations Board, 425 U.S. 507, 520 (1976) (internal quotations and citations omitted).

Sensing its dilemma, the City turned to the court for guidance; it moved for clarification as to whether the 1992 order also applied to the 1993 Parade. That motion was denied. *Irish American Gay, Lesbian & Bisexual Group of Boston v. City of Boston*, C.A. No. 92-1518 (Suffolk Super. Ct. Dec. 11, 1992, Zobel, J.).

On December 16, 1992, the BTD contacted the Veterans by a letter stating that "as a public official, the Commissioner is mindful that the parade organization and conduct are subject to anti-discrimination laws which extend to many protected characteristics including sexual orientation, as set forth in Chapters 151B and 272, Sections 92 and 98, of the General Laws."

Exhibit 11. On December 23, 1992, the BTD issued to the Veterans a conditional permit for the 1993 Parade, requiring the Veterans to cooperate with the Boston Police Department in devising a public safety plan for the Parade in the event that the court ordered GLIB's participation. The Veterans complied with this condition and on February 16, 1993, the City granted the Veterans a permit for the 1993 Parade. On February 19, 1993, the court granted GLIB a preliminary injunction enjoining the Veterans from excluding GLIB from the 1993 Parade.

GLIB contends that the City's actions in granting the Veterans a permit, knowing that the Veterans intended to exclude GLIB from the Parade in violation of the public accommodations statute, amounts to a violation of G.L. c. 272, § 98. Additionally, GLIB argues that by failing to enforce the public accommodations law, the City aided the Veterans in their violations of G.L. c. 272, § 98. Although the clause of the relevant statute relating to liability for aiding or inciting discrimination in a place of public accommodation has not been

interpreted by our appellate courts, I hold that the City's actions do not rise to that criminal statutory level of assistance or incitement.

While the City could have required the Veterans to promise to admit GLIB into the Parade in compliance with the public accommodations law, *see Healy v. James*, 408 U.S. 169, 193 (1972) (college administrator could constitutionally require group seeking official university recognition to affirm in advance its willingness to abide by reasonable campus laws), the applicability of the public accommodations statute was in dispute at the time. *See South Boston Allied War Veterans Council v. The Honorable Hiller B. Zobel*, C.A. No. 93-10509-WF (D. Mass. March 11, 1993, Wolf, J.) (questioning applicability of G.L. c. 272, § 98 to parades). Although the City is obliged by its own ordinances not to discriminate in places of public accommodations on the basis of sexual orientation, Boston City Ordinances c. 16, § 406 (1984), it is likewise prohibited from abridging the First Amendment rights of its citizens, which the Veterans claimed to be exercising. *Hudgens v. National Labor Relations Board*, 425 U.S. 507, 520 (1976). Therefore, while I conclude that the City's inaction was discreditable, it was not aiding or inciting under G.L. c. 272, § 98.

The most that can be said of the City's conduct is that it allowed the Veterans to hold a parade, for without a permit a parade is not lawful. But issuing a parade permit is a neutral act. *Otway v. City of N.Y.*, *supra* at 662. Moreover, the City did not encourage, assist, or act in cooperation with the Veterans in their attempt to discriminate against GLIB. As in cases discussing "aiding" in terms of accomplice liability, there must exist a "purposive attitude toward" accomplishing the result. *United States v. Peoni*, 100 F.2d 401, 402-403 (2d Cir. 1938); *see also Commonwealth v. Raposo*, 413 Mass. 182, 185 (1992) (discussing accomplice liability). GLIB has failed to

demonstrate that the City intended to facilitate the discrimination against GLIB by granting the Veterans a permit. *See Invisible Empire of the Knights of the Ku Klux Klan v. Thurmont*, 700 F.Supp. 281, 287 (D.Md. 1988) (granting of parade permit and police presence does not constitute state espousal of discriminatory policies). To the contrary, the City's then Mayor attempted to persuade the Veterans to allow GLIB to march. Under these circumstances, it cannot be said that the City aided or incited the Veterans in violating GLIB's rights under G.L. c. 272, § 98.

GLIB also challenges its exclusion from the Parade on the ground that such action violates its members' constitutional rights of freedom of expression and association and denies them equal protection of the laws as guaranteed by the First and Fourteenth Amendment to the United States Constitution. A finding of state action is necessary to implicate these federal constitutional guarantees. *See, e.g., San Francisco Arts & Athletics, Inc. v. United States Olympic Committee*, 483 U.S. 522, 542 (1987) (fundamental inquiry focuses on whether a governmental actor is involved to implicate constitutional prohibitions); *Rendell-Baker v. Kohn*, 457 U.S. 830, 837 (1982) (First and Fourteenth Amendments apply to acts of the state, not to the actions of private individuals or entities); *Lugar v. Edmonson Oil Co., Inc.*, 457 U.S. 933, 936 (1982) (state action requirement reflects fact that constitutional rights are protected only against governmental infringement). Thus, we must determine whether the City's involvement in the Parade is sufficient to establish the requisite state action so as to implicate the United States Constitution. *See Phillips v. Youth Development Program, Inc.*, 390 Mass. 652 (1983) (discussing state action requirement).

GLIB seeks injunctive relief, so while the City's role in the 1992 Parade is relevant and admissible as evidence, its current

and prospective participation is more significant.¹⁶ Assuming that the Parade began as a civic celebration, the present question is whether the City has sufficiently disengaged itself from the Parade to negate a finding of state action.¹⁷

Various activities that are ostensibly private have been found by different analyses to be state action for constitutional purposes. Elections to public office are governmental functions that cannot be put out of the Constitution's reach. *Terry v. Adams*, 345 U.S. 461 (1953). Private use of state processes or mechanisms may be state action. *Batson v. Kentucky*, 476 U.S. 79 (1986) (racially discriminatory jury challenges); *Shelley v. Kraemer*, 334 U.S. 1 (1948) (state enforcement of private racially restrictive covenants). Private discrimination may become state action when it is implemented by public authorities. *Evans v. Newton*, 382 U.S. 296 (1977) (city operation of privately donated racially segregated park). A typically private enterprise is subject to constitutional requirements where it maintains a mutually dependent relationship with the state. *Burton v. Wilmington Parking Authority*, 365 U.S. 715 (1961) (privately owned restaurant in a City-owned parking garage).

In asserting its constitutional claims here, GLIB contends that the City is inextricably intertwined in the sponsorship and planning of the Parade so as to require a finding of state action. In so concluding, GLIB relies on *Evans* and *Burton*, above. Additionally, GLIB argues that while parades are not traditionally a governmental function, this Parade is such.

The City maintains that its participation does not amount to state action as that concept is now defined by the Supreme Court. Predictably, the Veterans go farther: they argue that the only state action here is the City's attempt to interfere impermissibly with their private Parade.

¹⁶ The City's involvement in the 1992 Parade would present a closer question as to state action, but it is not before me here.

¹⁷ The plaintiff does not argue that the Parade is immutably public. GLIB concedes that the Parade could be privatized; it argues that the City has not done so.

The City is correct that the Supreme Court has narrowed the state doctrine since the days of *Evans* and *Burton*.¹⁸ But that truism does not decide this case. The relevant questions here are: is this Parade a governmental function that has been delegated to the Veterans to perform; is the Parade a typically private function, but one so suffused with City participation as to transform it into a state action event; is the Parade a state mechanism or process which the Veterans seek to use; is there a mutually dependent relationship between the City and the Veterans' enterprise.

First, organizing or running a celebratory parade is not traditionally a governmental function in the sense of conducting a public election or running a town. *Marsh v. Alabama*, 326 U.S. 501 (1946); *Phillips v. Youth Development Program, Inc.*, 390 Mass. 653, 654-55 (1983). And the Veterans are not clothed with official authority to enable them to stage the Parade. Moreover, the Parade is a public event in the sense that it serves its spectators by entertaining them, but that does not make it state action. *Rendell-Baker v. Kohn*, 457 U.S. 830, 842 (1982).

Second, a typically private event or activity may be state action where it is so extensively sponsored, regulated, and sometimes financed by the state that its choices must fairly be said to be made by the public authorities or required by them. *Blum v. Yaretsky*, 457 U.S. 991, 1004 (1982). GLIB maintains that such an elaborate financial and regulatory nexus is the case here.

¹⁸One commentator has recently put it as follows: "*Moose Lodge* [v. *Irvis*, 407 U.S. 163 (1972)] marked a significant contraction of the state action doctrine. The Supreme Court has consistently rejected invitations to jettison the doctrine by overruling the *Civil Rights Cases* and has insisted that state action is present only when private parties perform customary governmental functions, or when the state has required or actively encouraged the challenged private conduct, or when the conduct may be attributed to a state official or to a party acting in concert with state officials." Porter, *State Action*, *The Oxford Companion To The Supreme Court of the United States*, 823 (Hall, ed. New York, 1992).

In support of its nexus argument, GLIB points to the following facts. Up through the 1992 Parade, the City provided the use of its official seal, printing services, and direct funding to participants and sponsors.¹⁹ Until 1993, the City provided approximately twenty-five percent of the Parade's total costs through the Office of Business and Cultural Development. The City also identified and contacted potential participants and disseminated information regarding the Parade. These actions, however, do not differ from the assistance the City offers other parade organizers. City monies are also available for other events and parades as well. Indeed, the City points out that its involvement here is less than it is in some other comparable events. The Veterans' Chief Marshal applies for this Parade permit, whereas the Independence Day Parade is a City event for which the City or one of its departments secures the permit. Exh. 85, 86.²⁰

The focus in this inquiry is not on the overall relationship between the City and the Veterans, but rather on the City's involvement in the Veterans' decision to exclude GLIB. *Phillips v. Youth Development Program, Inc.*, 390 Mass. 652, 655 (1983). That the City granted the Veterans a parade permit does not render the Veterans a government actor. See *San Francisco Arts & Athletics, Inc. v. United States Olympic Committee*, 483 U.S. 522, 543 (1987) (Congress' grant of a corporate charter to Committee did not make the Committee a government agent); *Invisible Empire of the Knights of the Ku Klux Klan v. Thurmont*, 700 F.Supp. 281, 287 (D. Md. 1988) (police presence and granting parade permit does not constitute state espousal of discriminatory practices); *Gay Veterans Ass'n, Inc. v. American Legion*, 621 F.Supp. 1510,

¹⁹ Similar amenities are available to all parades of comparable size.

²⁰ Evidence was not offered about the December 12, 1993, Sleigh Bell Parade, which may have been an enterprise of the Boston Convention & Visitatio Bureau. *Boston Globe*, December 13, 1993, p. 19.

1517 (S.D.N.Y. 1985) (issuing a parade permit does not amount to state action). Here, the City opposed the Veterans' discrimination, at least rhetorically, but even acquiescence in the Veterans' discriminatory actions does not rise to the level of state action. *Blum v. Yaretsky*, 457 U.S. 991, 1004 (1982). It cannot be said that the City's regulatory scheme in issuing parade permits encouraged the Veterans to exclude GLIB from the Parade. *Blum v. Yaretsky*, 457 U.S. 991, 1004 (1982) (state will be held responsible for a private decision only when it provides coercion or significant encouragement); accord *Ponce v. Basketball Federation of Commonwealth of Puerto Rico*, 760 F.2d 375, 378 (1st Cir. 1985); *Phillips v. Youth Development Program, Inc.*, 390 Mass. 652, 655 (1983).

While a financial nexus may be indicative of state action, the City's financial involvement here does not warrant such a finding. While the Veterans decided which bills to submit to the City for the reimbursement of the various marching groups for the 1992 Parade, the City paid the requested amounts directly to the participants and/or sponsors after the Parade. These contributions of the City prior to the 1993 Parade are insufficient to establish the required nexus where the City's financial support in no way encouraged or compelled the Veterans to exclude GLIB from the Parade. *Blum v. Yaretsky*, 457 U.S. 991, 1004 (1982). Additionally, although the City made funds available to reimburse Parade participants and sponsors for the 1993 Parade, none were used. Moreover, the Mayor's reception to raise funds for the Veterans' does not transform a public event into a state action event. See *San Francisco Art & Athletics, Inc. v. United States Olympic Committee*, 483 U.S. 522, 544 (1987) (government may subsidize private entities without constitutional responsibility attaching). GLIB's inability to identify any action by the City which in fact motivated the Veterans' private discriminatory actions precludes a finding of state action under the nexus approach.

See *Ponce v. Basketball Federation of the Commonwealth of Puerto Rico*, 760 F.2d 375, 378 (1st Cir. 1985) (failure to point to specific governmental actions motivated private actors discriminatory conduct fatal to constitutional claim).

Third, it cannot be said that there is state action here because the Parade is a governmental mechanism which the Veterans seek to make an instrument of discrimination. Compare *Batson v. Kentucky*, above. The Veterans do not seek to involve the City in their decision to exclude GLIB and, as noted above, the Parade is not a state-created mechanism or procedure.

Finally, state action will be found where there exists a "symbiotic relationship" between the government and the private actor. *Citizens to End Animal Suffering and Exploitation, Inc. v. Faneuil Hall Marketplace, Inc.*, 745 F.Supp. 65, 72 (D. Mass. 1990). The Court has described a symbiotic relationship as one of interdependence and joint participation. *Burton v. Wilmington Parking Authority*, 365 U.S. 715, 725 (1961).

In support of its state action argument, GLIB notes that the Chief Marshal and Parade Adjutant for the 1992 Parade were City employees.²¹ The evidence reveals that becoming Chief Marshal is a process of "coming up through the ranks," and the Chief Marshal then selects the Parade Adjutant. With respect to the 1992 Parade, the Veterans Council elected Thomas J. Lyons, a city employee, as the Chief Marshal, to be the 1992 Parade Adjutant.²² Vaillancourt conducted his duties of organizing the parade primarily before or after work, and on the weekends. GLIB contends that the activities of these individuals leads to the conclusion that the state is inextricably involved in the Parade. I find, however, that Lyons' election had nothing to do with his status as a city employee.²³ Neither

²¹ The Chief Marshal and Parade Adjutant are in charge of organizing the Parade.

²² At this time, Lyons was the Deputy Commissioner of Veterans Affairs for the City. Vaillancourt was an employee of the Veterans Affairs Department of the City.

²³ Prior to Lyons' election, a city employee had not been elected to the position of Chief Marshall in 40 years.

Lyons' nor Vaillancourt's involvement in the Parade constitutes any participation on the City's part, and I so find.

The most important factor in this type of state action is the extent to which the City derives an economic benefit from the Veterans' discrimination. *Rendell-Baker v. Kohn*, 457 U.S. 830, 843 (1982); *Ponce v. Basketball Federation of the Commonwealth of Puerto Rico*, 760 F.2d 375, 382 (1st Cir. 1985); *Citizens to End Animal Suffering and Exploitation, Inc. v. Faneuil Hall Marketplace, Inc.*, 745 F.Supp. 65, 73 (D. Mass. 1990); see also *Burton v. Wilmington Parking Authority*, 365 U.S. 715, 724 (1961) (finding a direct economic relationship between restaurant's discriminatory policies and State's financial position). With respect to the 1993 Parade, the City set aside \$9,000 from its public celebrations budget. Exh. 87. The Veterans did not submit any bills to the City for reimbursement.²⁴ The Veterans did not use the City's printing services or request any assistance from the Office of Business and Cultural Development in obtaining marchers for the 1993 Parade. The Boston Public Works Department erected a set of bleachers to serve as a reviewing stand along the parade route, various police, fire, and emergency service vehicles and personnel participated in the Parade, and the City provided police and sanitation services. But those amenities did not profit the City.

After the Veterans publicly announced that they would not use public monies to help finance the 1993 Parade, the Mayor hosted a reception in honor of the Parade Committee. The reception was held at a city-owned facility and the City printed the invitations which contained the official City seal. Suggested donations for attendance were \$25 per person. Although the amount of monies collected as a result of this event are not in

²⁴ The same amount was set aside for the 1992 Parade. Exh. 87. The budget for fiscal year 1994 does not contain any provision for the 1994 Parade. Exh. 88.

evidence, approximately 200 people attended the event. The Mayor collected contributions for the Veterans Council before, during, and after the reception which he then turned over to the Veterans. In addition, some contributions were sent directly to the Veterans Council.

As set forth above, the City issued the Veterans a conditional parade permit requiring the Veterans to cooperate in the development of a public safety plan in the event that the court mandated GLIB's participation. The City also sought judicial clarification of the 1992 court order in connection with the 1993 Parade. Most notably, the Boston Police Department determined GLIB's placement in the 1993 Parade procession after GLIB received a preliminary injunction requiring its inclusion. *Irish American Gay, Lesbian & Bisexual Group of Boston v. City of Boston*, C.A. No. 92-1518 (Suffolk Super. Ct. Feb. 19, 1993, Zobel, J.).

Unlike *Burton*, above, in which "profits earned by discrimination not only contribute to, but also are indispensable elements in, the financial success of a governmental agency," 365 U.S. 715, 724 (1961), no such financial benefit to the City has been demonstrated here. Rather, as noted above, the City has expended monies on the Parade prior to 1993. Furthermore, the Mayor's reception raised for the Parade were in the form of checks made out to the Veterans Council, not the City. This can be contrasted with a city-run event, such as First Night, perhaps, in which the City provides entertainment to those who purchase tickets directly from the City.

Moreover, if a symbiotic relationship actually existed, the City would not have been able to remove itself from the Parade without discontinuing the Parade altogether. See *Burton v. Wilmington Parking Authority*, 365 U.S. 715, 725 (1961) (finding of state action justified where the state is in a position of interdependence with the private entity). Even if the City's involvement in the Parade prior to 1993 could establish the

requisite state action, the City has sufficiently removed itself from the Parade business so as to negate any such findings. Consequently, I find no symbiotic relationship exists between the City and the Veterans.

Accordingly, I find that the City's involvement in the Parade does not amount to state action. I also find that the Veterans' Council did not act on behalf of the City, but instead acted as a private party. Since the conduct of private parties is beyond the Constitution's scope, GLIB's constitutional claims must fail. *San Francisco Arts & Athletics, Inc. v. United States Olympic Committee*, 483 U.S. 522, 547 (1987); *Rendell-Baker v. Kohn*, 457 U.S. 830, 837 (1982); *Phillips v. Youth Development Program, Inc.*, 390 Mass. 652 (1982).²⁵

GLIB's constitutional arguments (post-trial Memorandum, pp. 17-27) appear to assume that the Massachusetts Constitution, like the Federal Constitution, protects their activities against state action interference only, not against private interference. That limitation upon the reach of the Commonwealth's Constitution's protections is questionable. *Batchelder v. Allied Stores International, Inc.*, 388 Mass. 83, 88-93 (1983); *O'Connell v. Chasdi*, 400 Mass. 686, 693-94 (1987). Also questionable is whether the Articles relied on by GLIB, one and sixteen, prohibit public or private sexual orientation discrimination. In any event, I do not reach those issues because the statute, G.L. c. 272, §§ 92, 98A, clearly applies here. Similarly, because I find that this Parade is not a state action event, I do not decide whether the discrimination here offends the Fourteenth Amendment.

Because I find that the public accommodations statute applies to the Parade, the next question is whether the statute as applied in the circumstances of this case abridges the Vet-

²⁵ It must be emphasized that this finding in no way immunizes the City against a different result should it undertake (or resume) greater participation in the Parade.

erans' First Amendment rights. The Veterans argue that their Parade is a form of speech protected by the First Amendment via the Fourteenth Amendment, and that their speech will be effectively diluted or distorted if they are required to include GLIB in their Parade.

The First Amendment protects two types of association from governmental interference. *Roberts v. United States Jaycees*, 468 U.S. 609, 617 (1984). First, it protects an individual's right to enter into and maintain certain intimate or private relationships against unjustified governmental interference. *Id.* at 617-18; *Board of Directors of Rotary International v. Rotary Club of Duarte*, 481 U.S. 537, 544 (1987); *Concord Rod & Gun Club, Inc. v. Massachusetts Commission Against Discrimination*, 402 Mass. 716, 721 (1988). This right is not at issue here.²⁶ Second, the First Amendment also protects the right of expressive association. It is this right that the Veterans claim would be unconstitutionally burdened by application of the public accommodations statute.

The right of expressive association protects individuals' freedom to associate for the purpose of engaging in protected speech or religious activities. *Board of Directors of Rotary International v. Rotary Club of Duarte*, 481 U.S. 537, 544 (1987); *Concord Rod & Gun Club, Inc. v. Massachusetts Commission Against Discrimination*, 402 Mass. 716, 721 (1988). This right necessarily includes the freedom not to associate. *Aboud v. Detroit Board of Education*, 431 U.S. 209, 234-35 (1977). Where an association "is organized for a

²⁶ The right of intimate association refers to those relationships that presuppose "deep attachments and commitments to the necessarily few other individuals with whom one shares not only a special community of thoughts, experiences, and beliefs but also distinctly personal aspects of one's life." *Roberts v. United States Jaycees*, 468 U.S. 609, 620 (1984). Contact between the Veterans and the various participants is casual, often occurring at best a few times a year and usually only in reference to the Parade. Indeed, no argument has been made that the Veterans share personal aspects of their lives with the various participating groups or sponsors.

specific expressive purpose and . . . it will not be able to advocate its desired viewpoints nearly as effectively if it cannot confine its membership to those who share the same sex, for example, or the same religion," a nondiscrimination condition may unconstitutionally infringe on the right of expressive association. *New York State Club Ass'n, Inc. v. City of New York*, 487 U.S. 1, 13 (1988); see also *Invisible Empire of the Knights of the Ku Klux Klan v. Thurmont*, 700 F.Supp. 281, 289 (D.Md. 1988). Where, however, the association consists of "[s]trangers to one another . . . and [the association] . . . admits all who are willing to pay the admission fee, . . . such a coming together to engage in [a] recreational [activity] . . . is not protected by the First Amendment." *Dallas v. Stanglin*, 490 U.S. 19, 25 (1989).

In the instant case, the Parade is more akin to a "social association." See *Dallas*, above. Participation in the Parade is not limited on the basis of similarity of viewpoints. The Parade celebrates a public holiday, and it is composed of diverse groups espousing myriad themes and values. The Parade is eclectic in every sense. It includes patriotic, commercial, political, moral, artistic, religious, athletic, public service, trade union, and eleemosynary themes. In fact, some of the messages expressed in the Parade contradict those espoused by other participants. For example, Gillette, a non-union company participated, as did the AFL-CIO. Moreover, some AFL-CIO marchers carried signs which read "Boycott Miller Beer," conflicting with the various sponsoring bars and pubs who sell such products. The only common theme among the participants and sponsors is their public involvement in the Parade. Indeed, the Veterans' position is paradoxical: a proper celebration of St. Patrick's and Evacuation Day requires diversity and inclusiveness; an assertion of a right of expressive association requires focus on a specific message, theme, or group — perhaps a Temple or Parish congregation. See, e.g., *New York County Bd. of Ancient Order of Hibernians v. Dinkins*, 814 F.Supp.

358, 367 (S.D.N.Y. 1993) (finding the New York St. Patrick's Day Parade conveyed a distinct message: proclaiming allegiance to the Roman Catholic Church and honoring the patron saint of Ireland). The Veterans have always opted for heterogeneity. Given the Veterans lack of selectivity in choosing participants and failure to circumscribe the marchers' message, it is impossible to discern any specific expressive purpose entitling the Parade to protection under the First Amendment.

Even if the statute does work some slight infringement on the Veterans' right of expressive association, that infringement is justified by the State's interest in eradicating sexual orientation discrimination. *Board of Directors of Rotary International v. Rotary Club of Duarte*, 481 U.S. 537, 549 (1987); *Roberts v. United States Jaycees*, 468 U.S. 609, 623 (1984). On its face, the statute does not seek to suppress speech. Rather, its goal is to eliminate discrimination which is unrelated to the suppression of expression. *Board of Directors of Rotary International v. Rotary Club of Duarte*, 481 U.S. 537, 549 (1987); *Roberts v. United States Jaycees*, 468 U.S. 609, 624 (1984). Moreover, the Veterans' right of expressive association is not unduly burdened by the statute's restriction. The statute does not mandate GLIB's inclusion into the Parade; it only prevents GLIB's exclusion simply because of its members' sexual orientation. *Concord Rod & Gun Club, Inc. v. Massachusetts Commission Against Discrimination*, 402 Mass. 716, 722 (1988). Consequently, any incidental abridgement of the Veterans' speech is no greater than necessary to accomplish the statute's legitimate purpose. *Roberts v. United States Jaycees*, 468 U.S. 609, 628-29 (1984). Accordingly, I rule that the nondiscrimination condition imposed by the public accommodations statute does not violate the Veterans' right to expressive association.²⁷

²⁷ This is not to say, however, that the Parade can never become a protected First Amendment activity. It simply has not been one in the past and is not one now.

In seeking permanent injunctive relief, GLIB asks that the court not renew the conditions on its participation which accompanied the preliminary injunction of February 22, 1993.²⁸ GLIB's participation in the 1992 and 1993 Parades was peaceable and orderly. Moreover, except for reiterating unsubstantiated concerns, neither the Veterans nor the City has shown that conditions applicable only to GLIB should be imposed.²⁹

²⁸ The conditions were:

1. No more than twenty-five (25) individuals ("the Group") will march.
2. Each such individual shall wear a readily identifiable badge or insignia indicating membership in the Irish-American Gay, Lesbian and Bisexual Group of Boston, which insignia shall be made known to the parade authorities and the Boston Police officer in charge of parade security no less than five (5) hours before the scheduled start of the parade.
3. All terms and conditions with [sic] bind all other parade participants shall bind the group.
4. The group shall display a single cloth banner carried at waist level.
5. The group's members shall carry no placards or posters other than the banner nor any other written material.
6. No group member, individually or in concert with any other or others, shall distribute by any manner or means any pamphlet, object or material of any kind whatsoever.
7. The group shall cooperate with and obey the appropriate orders of any Boston Police Department officer on duty in or about the vicinity of the parade.
8. All members of the group shall conduct themselves in a peaceful and orderly manner, with due regard for the public's safety.
9. Violation of any of the foregoing terms will constitute grounds for an automatic and immediate revocation of the right to march of both the individual or the group as a whole.
10. Any dispute with respect to any term of this Order shall be decided on the spot by the Officer in Charge of the Community Disorders Unit of the Boston Police Department or his designated representative; and if he designates a representative, such designee is to be made known no later than five hours before the scheduled start of the Parade to Plaintiffs Timothy Daley and/or Cathleen Finn and to Defendant John J. Hurley (and/or his designated representative)."

Irish-American Gay, Lesbian and Bisexual Group of Boston v. City of Boston, Civ. No. 92-1518A (Suffolk Super. Ct. Feb. 22, 1993, Zobel, J.).

²⁹ The disruption caused by spectators cannot be a basis for refusing GLIB's request. See *Palmore v. Sidoti*, 466 U.S. 429, 433 (1984) ("Private biases may be outside the reach of the law, but the law cannot, directly or indirectly, give them effect."); *Invisible Empire of the Knights of the Ku Klux Klan v. Thurmont*, 700 F.Supp. 281, 285 (D.Md. 1988).

Of course, GLIB is not entitled to special benefits, but neither should it be subject to special burdens. Therefore, I hold that GLIB is entitled to participate in the Parade on the same terms and conditions as other participants. See *Invisible Empire of the Knights of the Ku Klux Klan v. Thurmont*, 700 F.Supp. 281, 285-86 (D.Md. 1988) (enjoining the imposition of conditions on KKK march where no evidence of disruption by marchers).

In their cross-claim against the City, the Veterans allege that by seeking judicial clarification of the prior court order for the 1993 Parade, and by conceding the applicability of certain anti-discrimination laws, the City violated the Veterans' rights to freedom of speech, association, assembly, free exercise of religion, and equal protection of the laws in violation of the First and Fourteenth Amendments to the United States Constitution, and Articles 1, 12, 16 and 19 of the Massachusetts Declaration of Rights (Count I). Furthermore, the Veterans contend that the City's initial rejection and subsequent delay in issuing the Veterans a parade permit, along with the City's aforementioned actions, interfered with the Veterans' constitutional rights in violation of G.L. c. 12, §§ 11H and 11I (Count II). The Veterans seek a permanent injunction prohibiting the City from attempting to control the content of the Veterans' speech embodied in any future parades.

As explained above, the Veterans' Parade is not an exercise of their constitutionally protected right of expressive association. It is an open recreational event that is subject to the public accommodations law. Therefore, the City's gestures toward compliance with that law did not violate the constitutional rights of the Veterans. Similarly, with respect to G.L. c. 12, §§ 11H and 11I, the Veterans do not have a right to exclude GLIB that is "secured by the constitution or laws of the United States, or . . . the commonwealth." Therefore, the Veterans do not have a claim against the City for interference with their

exercise of such a right. Moreover, even if the Veterans were correct about their rights, the City's mistake of law about GLIB's rights and those of the Veterans would not constitute the "threats, intimidation or coercion" proscribed by the Massachusetts Civil Rights Act, c. 12, § 11H. *Layne v. Superintendent*, 406 Mass. 156, 158 (1989).

In summation: "the Veterans exclusion of GLIB from the St. Patrick's/Evacuation Day Parade violates G.L. c. 272, §§ 92A and 98, the public accommodations law; absent state action, the exclusion does not violate GLIB's rights under the Federal Constitution; the broadly inclusive Parade is not constitutionally protected expressive association; the Veterans' cross-claims that the City has violated their constitutional and statutory rights are meritless; GLIB's motion for an order authorizing its participation in the Parade subject to generally applicable terms and conditions will be allowed.

History does not record that St. Patrick limited his ministry to heterosexuals or that General Washington's soldiers were all straight. Inclusiveness should be the hallmark of their Parade.

ORDER

For the foregoing reasons, it is hereby ADJUDGED that the Defendant Veterans Council violated the plaintiffs' (GLIB's) rights to be free from sexual orientation discrimination in a place of public accommodation, resort, or amusement in violation of G.L. c. 272, §§ 92A and 98. It is therefore DECREED that the defendant Veterans Council is permanently enjoined from preventing plaintiff GLIB from participating in the St. Patrick's/Evacuation Day Parade because of the group members' sexual orientation. The preliminary injunction issued on February 22, 1993 is hereby DISSOLVED. The plaintiff may submit a proposed permanent injunction, preferably by agree-

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ment as to form. It is further ORDERED that the defendant Veterans Council shall allow plaintiff GLIB to participate in the Parade in the same manner and under the same terms and conditions applicable to all other participants in the Parade.

J. Harold Flannery
Justice of the Superior Court

DATED: December 15, 1993



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APPENDIX C.

418 Mass. 238

**IRISH-AMERICAN GAY, LESBIAN
AND BISEXUAL GROUP OF
BOSTON & others,¹**

v.

CITY OF BOSTON & others.²

Supreme Judicial Court of Massachusetts,
Suffolk.

Argued March 10, 1994.

Decided July 11, 1994.

Irish-American gay, lesbian and bisexual group sought to march in Boston's St. Patrick's Day-Evacuation Day Parade, and parade organizers refused. The Superior Court, Suffolk County, J. Harold Flannery, J., granted permanent injunctive relief to group, and organizers appealed. The Supreme Judicial Court, Liacos, C.J., held that: (1) organizers violated public accommodation law, which prohibits discrimination based on sexual orientation in public places, by not allowing group to march, and (2) public accommodation law did not violate organizers' First Amendment rights.

So ordererd.

Nolan, J., dissented with opinion.

¹ Timothy Daley, Barbra Kay, and Cathleen Finn, individually and on behalf of other members of the Irish-American Gay, Lesbian and Bisexual Group of Boston.

² South Boston Allied War Veterans Council and John J. "Wacko" Hurley, individually and as a representative member of the Council.

1. Civil Rights 119.1

Boston's St. Patrick's Day-Evacuation Day Parade fell within scope of public accommodation law which prohibits discrimination based on sexual orientation in admission to or treatment in any place of public accommodation, resort or amusement, and therefore parade organizers violated law by refusing to allow Irish-American gay, lesbian and bisexual group to march in parade, where parade occurred on public city streets and provided entertainment, recreation, and amusement to participants and spectators, and almost any individual or group would be admitted to parade if they applied or showed up at start of parade and offered to make contribution to council organizing the parade. M.G.L.A. c. 272, §§ 92a, 98.

2. Civil Rights 119.1

Constitutional Law 90.1(4)

Application of public accommodation law, which prohibits discrimination based on sexual orientation, to Boston's St. Patrick's Day-Evacuation Day Parade, to allow Irish-American gay, lesbian and bisexual group to march in parade, did not violate parade organizers' First Amendment rights where parade organizers did not use parade for expressive purposes, but instead allowed participation by nearly every individual and group that wanted to participate. U.S.C.A. Const. Amend. 1; M.G.L.A. c. 272, §§ 92A, 98.

3. Constitutional Law 90.1(4)

Not every parade is per se an exercise of rights protected by First Amendment. U.S.C.A. Const. Amend. 1.

4. Civil Rights 103

Constitutional Law 90.1(4)

Public accommodation law, which, *inter alia*, prohibits discrimination based on sexual orientation in admission to or treatment in any place of public accommodation, resort or amusement, was not unconstitutionally vague and overbroad in that it allegedly reaches constitutionally protected speech where law, by its terms, did not reach speech or expression or association protected by First Amendment and did not allow judge or any public official to examine content of speech. U.S.C.A. Const.Amend. 1; M.G.L.A. c. 272, §§ 92A, 98.

Chester Darling, Boston, for John J. Hurley & another.

Philip M. Cronin, Boston (Mary L. Bonauto, Portland, ME, with him), for plaintiffs.

Claudia Billings McKelway, Deputy Corp. Counsel (Krisna M. Basu, Asst. Corp. Counsel, with her), for the City of Boston.

Andrew J. McCauley, New York City, for Catholic League for Religious and Civil Rights, *amicus curiae*, submitted a brief.

George P. Napolitano, Special Asst. Atty. Gen., & Elizabeth S. Hendler, Boston, for Massachusetts Comm'n Against Discrimination, *amicus curiae*, submitted a brief.

Before LIACOS, C.J., and ABRAMS, NOLAN, O'CONNOR and GREANEY, JJ.

LIACOS, Chief Justice.

The defendants, South Boston Allied War Veterans Council (council)³ and John J. "Wacko" Hurley (Hurley), appeal from

³The council is an unincorporated association consisting of members elected from various South Boston veterans' groups.

a judgment of the Superior Court dated December 24, 1993, which, among other things, granted permanent injunctive relief to the plaintiffs.^{4 5} On appeal, the defendants raise a myriad of issues: (1) whether the annual St. Patrick's Day-Evacuation Day Parade sponsored by the council and held in the South Boston section of Boston is speech protected by the First and Fourteenth Amendments to the United States Constitution and art. 1, as amended, art. 12, art. 16, as amended, and art. 19 of the Massachusetts Declaration of Rights; (2) whether the trial judge committed error when he "examined, evaluated and passed judgment on the content of the parade and deemed that content unworthy of constitutional protection, thereby enabling the court to apply statutory law to speech, in violation of the [council's] Federal and State [c]onstitutional rights of freedom of speech, expression, exercise of religion, assembly, and due process and equal protection of the laws, as enumerated in the First and Fourteenth Amendments [to] the United States Constitution, and arts. 1, 12, 16 and 19"; (3) whether a parade is a place of public accommodation, resort, or amusement under the public accommodation discrimination law, G.L. c. 272, §§ 92A, 98; (4) whether the judgment of the Superior Court constituted a "prior restraint of the [council's] Federal and State constitutional rights of freedom of speech, expression,

⁴ Unless otherwise indicated, we use the term "defendants" to refer to the council and to Hurley, collectively. We acknowledge the assistance provided to us by the briefs of the amici, Massachusetts Commission Against Discrimination and the Catholic League for Religious and Civil Rights.

⁵ We granted the defendants' application for direct appellate review. After oral argument on March 10, 1994, we issued an order on March 11, 1994, affirming the judgment of the Superior Court and noting that an opinion or opinions would follow. We did so upon the request of the city so that it could plan adequately for the public safety related to the parade, scheduled for March 20, 1994.

The order states: "ORDERED, that the following entry be made in the docket, viz.,—A majority of the Justices having concluded that there was no error below, the judgment of the Superior Court, dated December 24, 1993, is affirmed. Opinion or opinions to follow." On March 15, 1994, we denied the defendants' motion for stay of judgment and order. This opinion is issued to explain the basis for that order.

exercise of religion, assembly, and due process and equal protection of the laws as enumerated in the First and Fourteenth Amendments . . . and arts. 1, 12, 16 and 19"; (5) whether the issuance of a parade permit by operation of law converts a place of public accommodation to the exclusive use of the private permit holder; (6) whether the judgment of the Superior Court "should be reversed as to the liability of the City of Boston to the Veterans as the findings of fact by the trial judge were clearly [241] against the weight of the uncontroverted evidence"; (7) whether "the City of Boston, acting under color of law, [did] threaten, intimidate, coerce, deprive and interfere with the [council's] Federal and State rights of freedom of speech, expression, exercise of religion, assembly, and due process and equal protection of the laws as enumerated in the First and Fourteenth Amendments . . . and arts. 1, 12, 16 and 19 . . . and in violation of the Massachusetts Civil Rights Act, G.L. c. 12 [§§ 11H, 11I], 42 U.S.C. § 1983, City of Boston Traffic Rules and Regulations Art. VIII (as amended through January 2, 1988); and City of Boston Ordinance of 1984, c. 16 (as amended by [c.] 17 and [c.] 18"; (8) whether G.L. c. 272, §§ 92A and 92, are unconstitutionally overbroad and vague; and (9) whether the judgment of the Superior Court should be reversed because the "finding [of the trial judge] of discrimination [perpetrated by the council] was faulty in its reasoning, unsupported by the record, and against the weight of the evidence." We discuss those issues we deem relevant to this appeal.

We state the facts found by the trial judge.⁶ In January, 1992, several individuals, including the plaintiff Barbra Kay, formed the Irish-American Gay, Lesbian and Bisexual Group of Boston (GLIB). GLIB is a social organization consisting of individuals who are homosexual or bisexual and their support-

⁶ The judge presided over a four-day bench trial at which twelve witnesses testified and 113 exhibits were admitted in evidence.

ers. GLIB was formed to march in the annual St. Patrick's Day-Evacuation Day Parade⁷ held in South Boston. GLIB's purposes are to express its members' pride in their dual identities as Irish or Irish-American persons who are also homosexual or bisexual, to demonstrate to the Irish-American community and to the gay, lesbian, and bisexual [242] community the diversity within those respective communities, and to show support for the Irish-American homosexual and bisexual men and women in New York City who were seeking to participate in that city's St. Patrick's Day Parade.

GLIB submitted an application to the council to march in the 1992 parade. The council denied the application, citing "safety reasons and insufficient information regarding [the] social club." Ultimately, GLIB was allowed to march in the 1992 parade under court order, with several restrictions placed on its participation that were not applied to other participants in the parade.

The following year, GLIB sought permission to participate in the 1993 parade. The council refused to admit the group, asserting that the "decision to exclude groups with sexual themes merely formalized that the Parade expresses traditional religious and social values." The judge found that excluding groups with sexual themes was itself a form of discrimination in violation of the public accommodation law's prohibition against discrimination based on sexual orientation.

At trial, Hurley "equivocated about his reasons for excluding GLIB" but ultimately testified that he would never allow them to march in the parade.⁸ The judge concluded that the inconsis-

⁷ The judge noted Evacuation Day "commemorates General Washington's initial military victory over the British in 1776, and the British departure from South Boston. It is an officially recognized historical event in Massachusetts and a Suffolk County holiday. . . . The General Court of Massachusetts established Evacuation Day in 1938. See G.L. c. 6, § 12K."

⁸ The judge noted that "Hurley speaks for the Veterans Council and he testified on its behalf. He indicated that the objection to GLIB's participation was based on the belief, although unsubstantiated, that its members were also members of ACT-UP

tent and changing explanations for excluding GLIB demonstrated the "pretextual nature" of those explanations. The judge found that GLIB was excluded from the parade because of the sexual orientation of its members. Based on our view of the record before us, we cannot say that this finding of the judge was clearly erroneous. Mass.R.Civ.P. 52(a), 365 Mass. 816 (1974). *Cox v. New England Tel. & Tel. Co.*, 414 Mass. 375, 384, 607 N.E.2d 1035 (1993).

[243] The judge concluded that the parade constitutes a public accommodation under G.L. c. 272, § 92A (quoted, *infra* at 1297). In arriving at that conclusion, the judge relied on the lack of selectivity exerted by the veterans over the parade's participants and sponsors and the parade's historical roots. The judge found that "[d]uring the first half of this century, the South Boston Citizens Association and the City of Boston organized the various Evacuation Day activities. In 1901, the City celebrated the 125th anniversary of Evacuation Day by a parade, artillery salute, concert, and fireworks display, among other events. In 1947 Mayor James Michael Curley granted the [council] authority to organize and conduct the Parade. Since that time, the City has annually granted the [council] a parade permit. No other applicant has applied for the permit.

"Over the years, the Parade has featured as many as 20,000 participants and as many as 1,000,000 spectators. In 1992, the Parade featured about 10,000 participants and 750,000 spectators. The 1993 Parade, postponed due to inclement weather, had fewer than 10,000 participants, about 400,000 spectators, and was aired live by Boston's community access cable television channel. The Parade is one of the six largest parades held in

and Queer Nation. The group's potential for being disorderly was offered as a reason for excluding it. The defendant's final position was that GLIB would be excluded because of its values and its messages, *i.e.*, its members' sexual orientation.

Boston annually, and the largest New England event for Irish-Americans, their friends, and well-wishers."

The Parade has followed substantially the same route in South Boston for at least forty-seven years, "providing entertainment, amusement, and recreation to participants and spectators alike." The council has demonstrated a lack of selectivity in admitting participants and sponsors.⁹ The judge [244] characterized the parade by noting that "the interests and viewpoints represented are truly catholic; commercial . . . , religious . . . , political . . . , eleemosynary . . . , patriotic . . . , moral . . . , theatrical . . . , athletic . . . , public service . . . , trade union . . . , and so on. Indeed, since 1947 the only groups that have been excluded from the Parade besides GLIB have been the Ku Klux Klan and ROAR (Restore Our Alienated Rights). Neither of these groups, however, is protected by G.L. c. 272, §§ 92A and 98."¹⁰

"The following, among others, sponsored or participated in the 1992 parade: Raytheon Corporation (Patriot Missile); Hallamore, Clydesdale Horses; radio station 98.5 Mix FM; Boston municipal police department; Irish basketball players; South Boston resident group; Massachusetts Bay Transportation Authority color guard; "McGruff the Crime Dog"; South Boston Against Drugs (SOBAD); Marion Manor Nursing Home; National Parks Service; South Boston Baptist "Bible Trolley"; Vietnam Era Veterans; Princeman singing group; Leukemia Society; City Councilors Rosaria Salerno, Albert "Dapper" O'Neil and John Nucci; radio station WZOU 94.5 FM; Houlihan's restaurant; Amrheins restaurant; Irish Mist restaurant; Shuberts Smoke Shop; Hub Video; Miss South Boston; Miss Ice-O-Rama; Miss Junior Ice-O-Rama; Lexington Minutemen; AFL-CIO; various high school bands; NORAIID (Northern Ireland Aid); Massachusetts Citizens for Life; "Joey Clowns" of Salem, New Hampshire, and radio stations WZLX FM and WAAF.

In addition to many of the above, the following and others sponsored or participated in the 1993 parade: Boston Bruins hockey club, Massachusetts Port Authority, Budweiser beer, Mt. Washington Bank, Pepsi Cola, several candidates for city council, various State representatives and senators, the "Cycling Murrays," Citizens Committee for JFD Day, Massachusetts Water Pollution Control Association, South Boston Savings Bank, all declared and undeclared mayoral candidates in Boston; and others.

¹⁰ ROAR was excluded because of its antibusing message. The judge made no finding as to why the Ku Klux Klan was excluded.

The council argues that the Massachusetts Right to Life group and a truck carrying anti-homosexual signs also were excluded, and that the message of NORAIID was limited. Assuming this to be true, we perceive no legal relevance of this fact to the findings of the judge or to the conclusion we reach.

Additionally, the judge found that there are no written procedures, criteria, or standards for selecting participants or sponsors of the parade. Participants from previous parades are sent an application for the upcoming parade. Those who have not previously participated and who inquire about participation in the upcoming parade are sent applications. Some groups receive reimbursement for their parade-related expenses. The council votes on applications for participation in "batches," and the council generally does not inquire into the message or views of each applicant.¹¹

[245] Certain groups or individuals have been allowed to participate in the parade even if they have not submitted an application prior to the parade. In 1993, members of the Boston Bruins hockey club merely showed up at the start of the parade and were permitted to march, without having filed an application. Others, such as the Massachusetts Water Pollution Control Association and several mayoral candidates, gained entrance by making a contribution to the parade without filling out an application. The judge concluded that the procedures for admittance into the parade was not uniformly applied.

Based on the foregoing, the judge concluded that "it is impossible to discern any specific expressive purpose entitling the Parade to protection under the First Amendment. . . . [T]he [council's] Parade is not an exercise of their constitutionally protected right of expressive association. It is an open recreational event that is subject to the public accommodation law. . . . [T]he [council's] exclusion of GLIB from the . . . Parade violates G.L. c. 272, §§ 92A and 98, the public accommodations law; absent state action, the exclusion does not violate GLIB's rights under the Federal Constitution; the broadly inclusive Parade is not constitutionally protected expressive asso-

¹¹ The judge found that, despite the formality of voting on applications by the council, decisions regarding participation are made by Hurley. The judge also found that, as to participation by GLIB, the council and Hurley are of the same opinion.

ciation; the [council's] cross-claims that the City has violated their constitutional and statutory rights are meritless."

The judge dismissed GLIB's claims against the city and entered judgment for the city on those claims.¹² The judge dismissed the council's cross claims against the city and entered judgment for the city on those claims. Finally, the judge issued the following order: "The defendants South Boston [246] Allied War Veterans Council, John J. "Wacko" Hurley, their officers, agents, servants, employees, attorneys, and all other persons in active concert or participation with them who have actual notice of this Order: (a) are permanently enjoined from discriminating against the plaintiff on the basis of sexual orientation with respect to participation in the defendant's annual St. Patrick's/Evacuation Day Parade; (b) shall accommodate in the Parade in all respects representatives of the plaintiff on the terms and conditions generally applicable to all other Parade participants."

[1] The plaintiffs invoked and the judge essentially relied on the public accommodation law, G.L. c. 272, §§ 92A and 98. Among the prohibitions in those sections is the prohibition against discrimination based on sexual orientation in the admission to or treatment in any place of public accommodation, resort or amusement. G.L. c. 272, § 93. "A place of public accommodation, resort or amusement" is "defined as and shall be deemed to include any place, whether licensed or unlicensed, which is open to and accepts or solicits the patronage of the general public and, without limiting the generality of this definition, whether or not it be (1) an inn, tavern, hotel, shelter, roadhouse, motel, trailer camp or resort for transient

¹² In their brief, the plaintiffs did not take issue with the dismissal of their claims against the city. The plaintiffs seek to raise this issue for the first time in a reply brief. It does not appear from the record that the plaintiffs filed a cross appeal, and therefore it is doubtful that they had the right to file a reply brief. Mass. R. App. P. 16(c), as amended, 399 Mass. 1217 (1987). Absent a cross appeal, the plaintiffs' claim of error on this issue is not properly before us.

or permanent guests or patrons seeking housing or lodging, food, drink, entertainment, health, recreation or rest; (2) a carrier, conveyance or elevator for the transportation of persons, whether operated on land, water or in the air, and the stations, terminals and facilities appurtenant thereto; (3) a gas station, garage, retail store or establishment, including those dispensing personal services; (4) a restaurant, bar or eating place, where food, beverages, confections or their derivatives are sold for consumption on or off the premises; (5) a rest room, barber shop, beauty parlor, bathhouse, seashore facilities or swimming pool, except such rest room, bathhouse or seashore facility as may be segregated on the basis of sex; (6) *a boardwalk or other public highway*; (7) an auditorium, theatre, music hall, meeting place or hall, including the commons halls of buildings; (8) *a place of public amusement, recreation, sport, exercise or entertainment*; (9) [247] public library, museum or planetarium; or (10) a hospital, dispensary or clinic operating for profit . . .” (emphasis supplied). G.L. c. 272, § 92A.

The judge ruled that the parade was a place of public accommodation within the ambit of § 92A. The language of § 92A itself and our case law require that the statute be given a broad and inclusive interpretation. *Concord Rod & Gun Club, Inc. v. Massachusetts Comm’n Against Discrimination*, 402 Mass. 716, 720, 524 N.E.2d 1364 (1988). *Local Fin. Co. v. Massachusetts Comm’n Against Discrimination*, 355 Mass. 10, 14, 242 N.E.2d 536 (1968). Section 92A itself specifically includes “a boardwalk or other public highway,” G.L. c. 272, § 92A(6), and also includes “a place of public amusement, recreation, sport, exercise or entertainment,” G.L. c. 272, § 92A(8). The plain language of the statute shows that the St. Patricks Day-Evacuation Day Parade falls within the scope of the public accommodation law. The parade occurs on the public streets of South Boston. Nothing in § 92A or any other statute suggests

that a boardwalk or other public highway loses its character as a place of public accommodation, resort, or amusement, which it gains by operation of that statute, merely because a parade is conducted there. Given that the statute is remedial and was intended to be interpreted broadly and inclusively, *Concord Rod & Gun Club, Inc.*, *supra*, such a narrowing interpretation would be contrary to the intent of the Legislature which we have heretofore perceived.

In addition, the judge found that the parade provides entertainment, recreation, and amusement to the participants as well as to the spectators, and that, in essence, almost any individual or group would be admitted to the parade if they either apply or show up at the start of the parade and offer to make a contribution to the council.¹³ We cannot say, [248] based on the evidence in the record before us, that these findings by the trial judge were clearly erroneous. *See* Mass.R.Civ.P. 52(a); *Cox v. New England Tel. & Tel. Co.*, 414 Mass. 375, 384, 607 N.E.2d 1035 (1993). Thus, the parade additionally falls within the public accommodation law under G.L. c. 272, § 92A(8).¹⁴

¹³The defendants argue that, by operation of law, issuance of a parade permit closes the streets of the parade route to the public. We need not decide whether that is true. The findings of the judge suggest that virtually any member or group drawn from the public may apply or pay to enter the parade. Thus, while spectators along the route during the parade cannot join the parade, they most likely would have been able to join if they had applied or appeared at the start of the parade and paid a fee. Under the defendants' reasoning, a restaurant which admits only diners who have made reservations or those who generously tip the maitre d' would be exempt from the public accommodation laws. Such a result would be contrary to the purposes of the public accommodation laws. *See Concord Rod & Gun Club, Inc.*, *supra*.

¹⁴The defendants argue that, since the parade is an event rather than a fixed, physical location, it is not a "place" as required by G.L. c. 272, §§ 92A and 98. The common meaning of the word indeed has physical connotations, but it also has temporal connotations as well. *See Webster's Third New Int'l Dictionary*, 1727 (1961). In light of the remedial nature of this statute, and the Legislature's intention that it be interpreted broadly and with an eye toward inclusiveness, we cannot adopt the restrictive definition of "place" advanced by the defendants. *Concord Rod & Gun Club, Inc. v. Massachusetts Comm'n Against Discrimination*, 402 Mass. 716, 720, 524 N.E.2d 1364 (1988). *Local Fin. Co. v. Massachusetts Comm'n*

[2] The defendants assert that the public accommodation law, as applied to the parade, violates their rights under the First Amendment to the United States Constitution.¹⁵ In discussing [249] the First Amendment rights of the defendants, the judge referred to their right of expressive association. See generally *Directors of Rotary Int'l v. Rotary Club of Duarte*, 481 U.S. 537, 544-49 (1987). On appeal, the defendants argue that their right to freedom of speech was implicated and that this right, see generally *Shuttlesworth v. Birmingham*, 394 U.S. 147, 152 (1969), not their right of expressive association, was the operative right in this case. For the purposes of this case, however, we need not decide whether the free speech rights or the expressive association right, or both, might be implicated by the factual situation asserted by the defendants. This is so because, as the judge found, it is "impossible to discern any specific expressive purpose entitling the Parade to protection under the First Amendment."¹⁶

Against Discrimination, 355 Mass. 10, 14, 242 N.E.2d 536 (1968). See *United States Jaycees v. Massachusetts Comm'n Against Discrimination*, 391 Mass. 594, 611-12, 463 N.E.2d 1151 (1984) (Abrams, J., concurring in part and dissenting in part, with whom Hennessy, C.J., and Liacos, J., joined).

The defendants' reliance on the majority opinion in *United States Jaycees*, is misplaced. In that case, the organization was found not to be a place of public accommodation because it maintained no physical place of operations in Massachusetts. *United States Jaycees*, *supra* at 603, 463 N.E.2d 1151. It cannot be said of the parade that it is not associated with some physical place or location in Massachusetts.

¹⁵The defendants attempt to invoke the free speech and associational rights guaranteed by the Constitution of the Commonwealth. Aside from referring to our Constitution in the argument headings of their brief, however, the defendants make no separate argument under our Constitution. Accordingly, the defendants have waived those issues and we do not address them. Mass.R.App.P. 16(a)(4), as amended, 367 Mass. 921 (1975). Similarly, the defendants do not argue in their brief as to their asserted rights under the religious freedom and equal protection provisions of either the Massachusetts or the Federal Constitution. We do not address those issues. *Id.*

¹⁶To be clear, the inquiry focuses on the rights of the members of the council and whether they exercised those rights through the parade, not on the rights of the parade or the parade participants.

[3] The defendants assert that a parade is a "pristine form of speech," and refer us to *New York County Bd. of Ancient Order of Hibernians v. Dinkins*, 814 F.Supp. 358 (S.D.N.Y. 1993) (*Hibernians*), among other cases. That case involved a group of homosexuals and bisexuals who wanted to march in the New York City St. Patrick's Day Parade. *Id.* at 360-61. At the outset, we noted that *Hibernians* is distinguishable from the facts of this case because in *Hibernians*, the judge found that the Ancient Order of Hibernians in fact had used the parade as a means of expression, that the admission process was selective, and that it had adopted rules to prevent parade participants from using that parade as a forum to express views inconsistent with the views of the Ancient Order of Hibernians or the Roman Catholic Church. *Hibernians*, *supra* at 361-62, 367.¹⁷ Such is not the case here. Furthermore, "contrary to the assumption of the defendants, not every [250] parade is per se an exercise of those rights protected by the First Amendment. *Shuttlesworth v. Birmingham*, *supra* ('parading may nonetheless constitute [a] method[] of expression entitled to First Amendment protection' [emphasis supplied]).¹⁸"

In order to rely on the protections of the First Amendment for speech or expressive association, the defendants initially had to demonstrate that the parade truly was an exercise of those First Amendment rights. *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 293 n.5 (1984). This, the judge found, they did not do.

¹⁷ We also note that the New York parade celebrates only St. Patrick's Day, while the Boston parade celebrates, in addition, Evacuation Day. See *New York County Bd. of Ancient Order of Hibernians v. Dinkins*, 814 F.Supp. 358, 368-69 (S.D.N.Y. 1993). It was partly on this basis that the judge characterized the Boston parade as a "public event."

¹⁸ We note also that we uphold the findings and rulings of the judge based on the record before us, particularly the history and nature of the parade here in issue. We do not suggest that every parade is nonexpressive or that every parade is necessarily a place of public accommodation. Rather, we base our conclusions on the unique nature of the facts found as to the parade in controversy.

"In arguing for reversal, the defendants point to evidence in the record suggesting that the parade did have an intended message (*i.e.*, that the parade was intended as an expressive vehicle). This evidence and other extensive evidence, including a videotape of the 1993 parade, however, were before the judge when he made his decision, and we assume that he considered all the evidence. It was for the judge to assign the appropriate weight and credibility to the evidence presented to him. The defendants failed to demonstrate and, on our own review of the record, we could not conclude that the findings of the judge were clearly erroneous." Mass.R.Civ.P. 52(a). *Cox v. New England Tel. & Tel. Co.*, *supra*.¹⁹

[251] We conclude, therefore, that the judge committed no error when he found that the defendants discriminated against the plaintiffs because of the plaintiffs' sexual orientation in refusing to admit them into the parade, which is a place of public accommodation. Likewise, there was no error in his finding that the parade was not used by the council for expressive pur-

¹⁹The dissent suggests that the finding of the judge that the parade did not have an expressive purpose was clearly erroneous because the parade provides entertainment to the spectators. Aside from the fact that the defendants themselves did not assert this as evidence of an expressive purpose, we are puzzled by the dissent's assertion, without citation, that the mere provision of entertainment would transform the parade into an expressive event. This assertion is especially puzzling in light of the detailed and exhaustive discussion by the judge of the evidence which led him to conclude that the parade was a civic, nonexpressive celebration. *Cf. Augat, Inc. v. Aegis, Inc.*, 417 Mass. 484, 497, 631 N.E.2d 995 (1994) (Nolan, J., dissenting) (this court may not "ignore both the record and the trial judge's findings of fact by baldly 'assuming' facts on its own to reach an alternative conclusion which it feels is appropriate").

The dissent's reliance on *Wooley v. Maynard*, 430 U.S. 705, 715, 97 S.Ct. 1428, 1435, 51 L.Ed.2d 752 (1977), is misplaced. *Post* at 1302-03. The private automobile of a New Hampshire resident could not possibly be characterized as a public accommodation. Here, on the contrary, the judge found, we agreed, and the dissent assumes, that the parade is a public accommodation within the statute. Thus, the burden was on the defendants to demonstrate that they were exercising their First Amendment rights and as a result were entitled to exemption from the public accommodation laws. *See Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 293 n.5, 104 S.Ct. 3065, 3069, 82 L.Ed.2d 221 (1984).

poses, and that, as a result, the defendants could not cloak their discriminatory acts in the mantle of the First Amendment.

[4] The defendants argue that the public accommodation law, G.L. c. 272, §§ 92A and 98, is unconstitutionally vague and overbroad. It does not appear from the record, submitted by the defendants, that they raised these issues below. We shall address them nevertheless because the claim is of possible public significance and because we can dispose of them briefly.

The defendants argue that the public accommodation law is overbroad because it reaches constitutionally protected speech in that it allows the court to examine the content of speech with standardless discretion. This is not so. By their terms, G.L. c. 272, §§ 92A and 98, facially do not reach a speech or expression or association protected by the First Amendment. They do not allow a judge, or any public official, to examine the content of speech.²⁰ Now would we inter[252]pret those sections so that they could reach and unconstitutionally infringe on speech. *Cf. R.A.V. v. St. Paul, Minn.*, ___ U.S. ___, ___, 112 S.Ct. 2538, 2542, 120 L.Ed.2d 305 (1992); *Forsyth County, Ga. v. Nationalist Movement*, ___ U.S. ___, ___, 112 S.Ct. 2395, 2401-2402, 120 L.Ed.2d 101 (1992); *Broadrick v. Oklahoma*, 413 U.S. 601, 613, 93 S.Ct. 2908, 2916, 36 L.Ed.2d 830 (1973).²¹ We already have concluded that, in this case, the public accommodation law did not infringe on the defendants' First Amendment rights.

²⁰ Contrary to the defendants' assertion, the judge did not inquire into the content of speech in this case. Instead, he examined whether there existed speech or any other activity protected by the First Amendment. That he permissibly can, and must, do. *See United States v. O'Brien*, 391 U.S. 367, 376, 88 S.Ct. 1673, 1678, 20 L.Ed.2d 672 (1968) (not all conduct is protected speech even if so labeled by the actor); *Clark, supra*, 468 U.S. at 293 n.5, 104 S.Ct. at 3069 n.5 (one seeking relief under First Amendment must show that he is entitled to it, since there is no presumption of expressiveness).

²¹ We leave open for an appropriate case the question whether the public accommodation law permissibly could be applied to a genuine exercise of First Amendment rights. *See R.A.V. v. St. Paul, Minn.*, ___ U.S. ___, ___, 112 S.Ct. 2538, 2542, 2548, 120 L.Ed.2d 305 (1992).

The defendants' vagueness argument is that "'men of common intelligence must necessarily guess at [the] meaning [of the public accommodation law].'" *Connally v. General Construction Co.*, 269 U.S. 385, 391 [46 S.Ct. 126, 127, 70 L.Ed. 322] (1926)." The defendants argue this is true, because three State judges (two in the Superior Court and one in the Appeals Court) have interpreted the statutes as reaching parades and one Federal judge has suggested that the statute was ambiguous.

We note that the judges mentioned by the defendants did not find that the statute applied to parades in general, but rather to the St. Patrick's Day-Evacuation Day Parade in particular, because of the unique characteristics of the parade. The defendants' argument rests on the assumption that the statute reaches their speech. The judge below found and we have affirmed, however, that the defendants did not prove that they truly were exercising First Amendment rights. Thus, their vagueness argument fails because it rests on a faulty assumption. Furthermore, the public accommodation law gives persons of ordinary intelligence a reasonable opportunity to know what is prohibited, provides standards to those who must enforce those laws, and does not inhibit the valid exercise of First Amendment rights. *See Grayned v. Rockford*, 408 U.S. 104, 108-109, 92 S.Ct. 2294, 2298-99, 33 L.Ed.2d 222 (1972).

[253] Because the defendants had no right to discriminate against members of GLIB, by operation of logic the city could not possibly have interfered with or infringed on any of their rights as asserted by the defendants. Thus, the judge properly dismissed the defendants' cross claims against the city.

NOLAN, Justice (dissenting).

Today will be regarded as a sad and frustrating day in the history of the First Amendment to the United States Constitution. Today, a majority of this court upholds, and thereby endorses, a trial judge's flagrant violation of the free speech

rights of citizens of this Commonwealth. The majority acquiesces in a judge's order instructing a private group that if it wishes to express itself at all, it must include in its expression a particular idea, one with which the group does not agree. One must strain to recall or even to imagine such an obvious violation of the revered right to free speech.

The majority upholds a Superior Court judge's decision that the South Boston Allied War Veterans Council's (Veterans Council) exclusion of the Irish-American Gay, Lesbian and Bisexual Group of Boston (GLIB) from the St. Patrick's Day-Evacuation Day Parade violates GLIB's members' statutory right to be free from discrimination on the basis of their sexual preference in place of public accommodation, and that the application of the statute to the facts of this case does not violate the Veterans Council's rights under the First Amendment. It is because I conclude that the Veterans Council's rights were violated by the judge's decision and order compelling it to allow GLIB to march and express its message in the Veterans Council's parade that I dissent from the decision of the majority.

1. *G.L. c. 272, §§ 92A, 98*. The majority finds no error in the judge's determination that the conduct of the Veterans Council in excluding GLIB from its parade violates the Commonwealth's accommodation law, *G.L. c. 272, §§ 92A, 98*. I do not fully concur with the judge's reasoning in determining the applicability of the statute. Further, for [254] reasons discussed, *infra*, I do not agree that the judge's findings support his conclusion that the conduct of the Veterans Council violated the statute, even if it otherwise applies. I reserve extended discussion on these matters, however, and proceed to issues concerning rights under the First Amendment. I shall assume for the purpose of the following discussion that the statute applies to the conduct of the Veterans Council.

2. *First Amendment*. The judge limited his discussion of the First Amendment to the freedom of expressive association.

He ruled that the freedom of speech was not at issue. This determination is erroneous. The defendants' freedom of speech is certainly at issue in this case — and was properly raised and argued¹ — and is violated by the judge's application of G.L. c. 272, §§ 92A, 98.

a. *Freedom of speech.* The First Amendment to the Constitution of the United States reads, in part: "Congress shall make no law . . . abridging the freedom of speech." Through the Fourteenth Amendment to the United States Constitution, the First Amendment limitation on Congress' power to legislate is applied to the legislative power of the States. *Wallace v. Jaffree*, 472 U.S. 38, 49-49, 105 S.Ct. 2479, 2485, 86 L.Ed.2d 29 (1985). Further, "[t]hat the action of state court and judicial officers in their official capacities is to be regarded as action of the State within the meaning of the Fourteenth Amendment, is a proposition which has long been established." *Shelley v. Kraemer*, 334 U.S. 1, 14, 68 S.Ct. 836, 842, 92 L.Ed. 1161 (1948). Thus, it is as constitutionally objectionable for a judge sitting in a court of this Commonwealth to issue an order improperly "abridging the freedom of speech," as it is for Congress to enact a law doing the same.

As a general proposition, the State acts within its power when it enacts reasonable "time, place and manner" regula[255]tions which affect speech of expression. *Cox v. New Hampshire*, 312 U.S. 569, 576, 61 S.Ct. 762, 766, 85 L.Ed. 1049 (1941) ("If a municipality has authority to control the use of its public streets for parades or processions, as it undoubtedly has, it cannot be denied authority to give consideration, without unfair discrimination, to time, place and manner in relation to the other proper uses of the streets"). Conversely,

¹ The Veterans Council presented argument on the freedom of speech throughout the proceedings in this case. In particular, argument on the issue was presented at trial, in the defendants' memorandum in support of proposed findings of facts and proposed conclusions of law, and in the defendants' briefs on appeal.

restrictions on the content of speech are generally improper. See *Riley v. National Fed'n of the Blind of N.C.*, 487 U.S. 781, 798, 108 S.Ct. 2667, 2678, 101 L.Ed.2d 669 (1988) ("[The State's] content-based regulation is subject to exacting First Amendment scrutiny"); *Southeastern Promotions, Ltd. v. Conrad*, 420 U.S. 546, 558, 95 S.Ct. 1239, 1246, 43 L.Ed.2d 448 (1975), quoting *Bantam Books, Inc. v. Sullivan*, 372 U.S. 58, 70, 83 S.Ct. 631, 639, 9 L.Ed.2d 584 (1963) ("Any system of prior restraint . . . 'comes to this Court bearing a heavy presumption against its constitutional validity'"); *Police Dep't of Chicago v. Mosley*, 408 U.S. 92, 96, 92 S.Ct. 2286, 2290, 33 L.Ed.2d 212 (1972) ("government may not grant the use of a forum to people whose views it finds acceptable, but deny use to those wishing to express less favored or more controversial views"). The freedom of speech comprises both the right to speak and the right to refrain from speaking. *Riley, supra*, 487 U.S. at 795, 108 S.Ct. at 2626. *Wooley v. Maynard*, 430 U.S. 705, 715, 97 S.Ct. 1428, 1435, 51 L.Ed.2d 752 (1977). Thus, "[t]he First Amendment protects the right of individuals . . . to refuse to foster . . . an idea they find morally objectionable." *Wooley, supra*. "Mandating speech that a speaker would not otherwise make necessarily alters the content of the speech." *Riley, supra*.

In the present case, the judge's decision and order requires the Veterans Council to allow the members of GLIB to march in the parade as an identifiable group.² As noted by the judge and the majority, GLIB's organizational purposes are expressive in nature; to express its members' pride in their sexual preference; to demonstrate to the community the [256] diversity which exists therein; and to show support for homosexuals

² The judgment states in part: "[The defendants] shall accommodate in the Parade in all respects representatives of [GLIB] on the terms and conditions generally applicable to all other Parade participants." His decision makes clear that this entails allowing the members of GLIB to march in a group, identifying themselves as members of the group, and identifying the group through a banner.

and bisexuals in New York who sought to march in a St. Patrick's Day Parade in New York City. The Veterans Council, as license holder of the St. Patrick's Day-Evacuation Day Parade, determines who marches in the parade. Except for GLIB, there would be no group marching in the parade whose message supports homosexuality or bisexuality. Therefore, the judge's decision and order permitting GLIB to march as an identifiable group results in GLIB's message being added to the parade. This is "[m]andating speech that [the Veterans Council] would not otherwise make," and is thus content-based regulation. *Riley, supra*.

Supreme Court cases concerning content-based regulation of speech examine such regulation with a strict scrutiny, or "exacting" scrutiny standard. See, e.g., *Riley, supra*, 487 U.S. at 798, 108 S.Ct. at 2678; *Pacific Gas & Elec. Co. v. Public Utils. Comm'n of Cal.*, 475 U.S. 1, 19-20, 106 S.Ct. 903, 913, 89 L.Ed.2d 1 (1986); *Wooley, supra*, 430 U.S. at 716, 97 S.Ct. at 1436. If we assume that evisceration of discrimination on the basis of sexual preference is a compelling State interest, the judge's action in this case is not narrowly tailored to attaining that end: "[T]he State can serve that interest through means that would not violate [defendants'] First Amendment rights." *Pacific Gas & Elec. Co., supra*, 475 U.S. at 19, 106 S.Ct. at 913. To compel the Veterans Council to express GLIB's message is not narrowly tailored to the State's interest. It unnecessarily hampers the free speech of the Veterans Council. It goes beyond merely regulating discriminatory conduct, and requires a private group, the Veterans Council, to promote GLIB's ideals. This is unconstitutional: "[W]here the State's interest is to disseminate an ideology, no matter how acceptable to some, such interest cannot outweigh an individual's First Amendment right to avoid becoming the courier for such message." *Wooley, supra*, 430 U.S. at 717, 97 S.Ct. at 1436.

It is important to note that the Veterans Council does not need a narrow or distinct theme or message in its parade for it to be

protected under the First Amendment. Both the judge and the majority try to illustrate that the parade is a public celebration with no distinct, unified theme; the impli[257]cation is that it is not expressive activity, and is therefore not worthy of First Amendment protection. This analysis is erroneous for two reasons. First, regardless of whether the parade has one message, ten messages, or no message at all, if GLIB's particular message is not in the parade, it cannot constitutionally be forced on the Veterans Council. Thus, although an individual who drives his automobile may have no expressive purpose for doing so, the State cannot require him to foster a message while driving that he otherwise would not. *Wooley, supra* at 717, 97 S.Ct. at 1436 (violation of the First Amendment to require defendants to display "Life Free or Die" on their license plates). Second, the finding that the parade lacks an expressive purpose is clearly erroneous. The Veterans Council obtains a license, collects funds, and privately organizes the St. Patrick's Day-Evacuation Day Parade each year. They do so knowing that their efforts will provide entertainment to the hundreds of thousands of spectators who line the streets of the South Boston section of Boston to watch in celebration of St. Patrick's Day and Evacuation Day. The judge would have us believe that the Veterans Council and all the parade participants show up solely for their own entertainment, and that any entertainment of the viewing public is merely incidental.³ This defies logic, yet is just one of many gaps in reason created by the trial judge's

³The judge relies on the Supreme Court case of *Dallas v. Stanglin*, 490 U.S. 19, 25, 109 S.Ct. 1591, 1595, 104 L.Ed.2d 18 (1989), wherein the Court ruled: "the activity of . . . dance-hall patrons — coming together to engage in recreational dancing — is not protected by the First Amendment." The case is inapposite. Unlike the participants in the Veterans Council's parade, patrons in the dance hall did not gather to dance for the purpose of entertaining others in celebration of a holiday. The parade is conducted for the entertainment of hundreds of thousands of people; the dance-hall patrons whose conduct was at issue in *Dallas*, did not gather for the purpose of entertaining others.

flagrant efforts to forego extending to the Veterans Council their deserved First Amendment rights.

The judge's order clearly violates the Veterans Council's freedom of speech.

b. *Freedom of association.* The judge determined, and the majority agreed, that the Veterans Council's First Amend-[258]ment freedom of expressive association is not unconstitutionally infringed by requiring GLIB to march as a group in the parade. I disagree.

The freedom of expressive association is the "right to associate for the purpose of engaging in those activities protected by the First Amendment — speech, [among others]." *Roberts v. United States Jaycees*, 468 U.S. 609, 618, 104 S.Ct. 3244, 3249, 82 L.Ed.2d 462 (1984). Much like the related, broader freedom of speech, "[f]reedom of association . . . plainly presupposes a freedom not to associate." *Id.* at 623, 104 S.Ct. at 3252, citing *Abod v. Detroit Bd. of Ed.*, 431 U.S. 209, 234-35, 97 S.Ct. 1782, 1799, 52 L.Ed.2d 261 (1977). Infringements on the right not to associate are examined under strict scrutiny; "Infringements on that right may be justified by regulations adopted to serve compelling state interests, unrelated to the suppression of ideas, that cannot be achieved through means significantly less restrictive of associational freedoms." *Roberts v. United States Jaycees*, *supra*, and cases cited. It is established, however, that, "[i]f a club seeks to exclude individuals who do not share the views that the club's members wish to promote," the law may not require association. *New York State Club Ass'n v. City of New York*, 487 U.S. 1, 13, 108 S.Ct. 2225, 2234, 101 L.Ed.2d 1 (1988).

As discussed above, the Veterans Council organizes the parade for expressive purposes: to entertain the hundreds of thousands of spectators who view the parade each year in celebration of St. Patrick's Day and Evacuation Day. Again assuming, without deciding, that evisceration of discrimination

on the basis of sexual preference is a compelling State interest, State regulation in furtherance of this end must be narrowly tailored to attaining it. Thus, requiring the Veterans Council not to exclude the members of GLIB on the basis of their sexual preference may be a constitutionally valid infringement on the Veterans Council's rights; however, precluding the Veterans Council from disallowing the members of GLIB from expressing themselves as a group is not related to the State's interest, and is therefore unconstitutional. In other words, because the judge's decision and order require the Veterans Council to allow GLIB to express itself, they [259] violate the rule that, "[where] a club seeks to exclude individuals who do not share the views that the club's members wish to promote, the Law [may] erect[] no obstacle to this end." *New York State Club Ass'n, supra*.

It is important to note that this case is distinguishable from those that involve exclusion of individuals whose message and protected status may be inseparable. For example, in *Invisible Empire of the Knights of the Ku Klux Klan v. Mayor, Bd. of Comm'rs, & Chief of Police of Thurmont*, 700 F.Supp. 281 (D.Md.1988), a private group comprising numerous African Americans sought to enforce against the Ku Klux Klan (KKK) an antidiscrimination statute in an effort to participate in the KKK's planned parade. The Federal District Court determined that permitting the group to participate would be unconstitutional, as the mere presence of African Americans in the KKK's parade would frustrate the KKK's message of white separatism. *Id.* at 289. This is distinguishable from the present case: the mere presence of homosexuals or bisexuals in the parade likely would not frustrate any message of the Veterans Council. This is so because GLIB's message is separable from its members' status as homosexuals or bisexuals. Thus, the presence of homosexuals or bisexuals, not outwardly identifiable as such, in the parade would likely not affect any message of the Veterans

Council, while the presence of those same individuals marching as an identifiable group — the Irish-American Gay, Lesbian and Bisexual Group of Boston — would.

As discussed above, mandating mere association in this case may be constitutional; mandating a message is not. At the very least, the judge's decision and order, insofar as it compels the Veterans Council to allow the members of GLIB to march and express themselves as a group in the Veterans Council's parade and violates the First Amendment.

3. *Other matters.* Aside from the the judge's improper refusal to address the issue of freedom of speech and his erroneous analysis of the issue of freedom of association, his decision and order includes other serious errors of law, reason, and fact which warrant discussion.

[260] "In his decision, the judge equates excluding a group on the basis of its message or values with exclusion on the basis of its members' sexual preference: 'The defendant's final position was GLIB would be excluded because of its values and its message, *i.e.*, *its members' sexual orientation*' (emphasis added). This is clear error, and may have led to a baseless finding that the Veterans Council discriminated on the basis of GLIB's members sexual preference. If the Veterans Council excluded GLIB because of its message, and not specifically because of its members's sexual preference, then the statute was not violated. *See G.L. c. 272, § 92A.* Indeed, overwhelming evidence exists throughout the record which indicates that GLIB was excluded because of its message, and not because of its members' sexual preference."⁴ Conversely, the only

⁴There is no evidence in the record that the Veterans Council ever inquired into the sexual preference of any person intending to march in the parade, including the members of GLIB; there is no evidence that the Veterans Council ever excluded any homosexual or bisexual not a member of GLIB; the judge found that not all members of GLIB are homosexual or bisexual; there is evidence in the record that the Veterans Council would let the members of GLIB march without a banner identifying the group.

evidence which supports a finding of discrimination was that many of GLIB's members are homosexual and GLIB was excluded, and that the Veterans Council had, in the past, proffered different reasons for its decision to exclude GLIB.⁵

"Relatedly, the judge state that, even if the Veterans Council's assertion that it excluded GLIB was under a policy of excluding all sexual themes was true, '[e]xcluding all sexual themes . . . contravenes the First Amendment's prohibition on content-based restrictions.' This is a flagrantly erroneous statement of law. The judge found that there was no State action here; certainly private parties may exclude any topic [261] or theme they want from their expression. This statement is an example of quintessential content-based regulation of speech which is plainly prohibited by the First Amendment, and it illustrates the confused understanding of the First Amendment by the judge and by this court, through its acquiescence."

4. *Conclusion.* That the judge's decision and order requiring the Veterans Council to allow GLIB to march and to express itself as a group is a flagrant violation of the Veterans Council's First Amendment rights is an unavoidable conclusion. The judge's crude regulation of the content of the Veterans Council's speech is epitomized by the last sentence of his decision: "Inclusiveness should be the hallmark of [the Veterans Council's] parade."

We have never been in the business of protecting only internally consistent, narrowly focused, politically sensitive speech. It is a travesty that we today vacate this precedent. Our holding today, while, to some, seemingly pushes us forward, really pushes us back over 200 years, to an era that lacked the protection guaranteed by the First Amendment. I dissent.

⁵ It is important to note that each of the reasons for excluding GLIB proffered by the Veterans Council is not discriminatory. At various times throughout the past years, the Veterans Council proffered the following reasons for excluding GLIB: the Veterans Council was not provided with enough information about GLIB on its application; it was concerned with the safety of the group's members and the members of the public; and it excluded all sexual themes from the parade.

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APPENDIX D.

**Supreme Judicial Court for the
Commonwealth of Massachusetts
1412 Courthouse, Boston, Massachusetts 02108
(617) 557-1020**

Chester Darling, Esquire
306 Dartmouth Street
Boston MA 02116

RE: No. SJC-06498

IRISH-AMERICAN GAY, LESBIAN AND BISEX-
UAL GROUP OF BOSTON & others

vs.

CITY OF BOSTON vs. SOUTH BOSTON ALLIED
WAR VETERANS COUNCIL & another

NOTICE OF DENIAL OF PETITION FOR REHEARING

The Petition for Rehearing filed in the above captioned case
has been considered by the court and is denied.

Very truly yours,

Jean M. Kennett, Clerk

Dated: July 26, 1994

To: Mary Lisa Bonauto, Esquire
John P. Ward, Esquire
Gretchen Van Ness, Esquire
Philip M. Cronin, Esquire
Claudia B. McKelway, Ass't Corp. Counsel
Chester Darling, Esquire
George P. Napolitano, Special A.A.G.
Elizabeth S. Hendler, Esquire
Andrew McCauley